

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>		1. SOLICITATION NUMBER W912QR26RA031	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED	PAGE OF PAGES 1 93
IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.					
4. CONTRACT NUMBER		5. REQUISITION/PURCHASE REQUEST NUMBER		6. PROJECT NUMBER 570103	
7. ISSUED BY W072 ENDIST LOUISVILLE KO CONTRACTING DIVISION, 600 DR MARTIN LUTHER KING JR PL LOUISVILLE, KY 40202-2230 UNITED STATES STEPHANIE DREES, EMAIL: STEPHANIE.N.DREES@USACE.ARMY.MIL TELEPHONE: (502) 315-3270		CODE W912QR	8. ADDRESS OFFER TO W072 ENDIST LOUISVILLE KO CONTRACTING DIVISION, 600 DR MARTIN LUTHER KING JR PL LOUISVILLE, KY 40202-2230 UNITED STATES		
9. FOR INFORMATION CALL:		a. NAME STEPHANIE DREES		b. TELEPHONE NUMBER <i>(Include area code) (NO COLLECT CALLS)</i> (502) 315-3270	

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

PROJECT TITLE: FTC FIRE STATION

PROJECT LOCATION: FORT CAMPBELL, KENTUCKY

DESIGN BUILD TO BUDGET CONSTRUCTION OF A FIRE STATION IN FORT CAMPBELL, KENTUCKY. DESIGN AND CONSTRUCT A REQUIRED NON-STANDARD ONE-COMPANY SATELLITE FIRE STATION TO SERVE THE SABRE AIRFIELD. THE FIRE STATION WILL CONTAIN A KITCHEN AND DINING AREA, SLEEPING AREAS, STORAGE AREA, TRAINING ROOM, LAUNDRY, PHYSICAL TRAINING ROOM, LATRINES AND APPARATUS ROOM. THE SUPPORTING FACILITIES INCLUDE ELECTRICAL, HEATING AND AIR CONDITIONING (APPROXIMATELY 15 TONS), BASIC LANDSCAPING AND SITE DEVELOPMENT, INFORMATION SYSTEMS, SECURITY/SCAN SYSTEM FOR AT/FP, AND AN AREA FOR FIRETRUCK BASIC MAINTENANCE AND CLEANING. ACCESS FOR THE HANDICAPPED WILL BE PROVIDED.

The Contractor shall be required to commence work under this contract within 720 calendar days after the date the Contractor receives the notice to proceed.

11. The contractor shall begin performance within <u>10</u> calendar days and complete it within <u>720</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☐ mandatory ☐ negotiable. <i>(See FAR 52.211-10)</i> .	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO	12b. CALENDAR DAYS 10
13. ADDITIONAL SOLICITATION REQUIREMENTS:	
a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by <u>02:00 PM</u> <i>(hour)</i> local time <u>08 MAY 2026</u> (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.	
b. An offer guarantee ☐ is, ☒ is not required.	
c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.	
d. Offers providing less than <u>120</u> calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.	

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)

20b. SIGNATURE

20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT

23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN
(4 copies unless otherwise specified)



ITEM

25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES
CODE AT

☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()

26. ADMINISTERED BY

27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN
(Type or print)

31a. NAME OF CONTRACTING OFFICER (Type or print)

30b. SIGNATURE

30c. DATE

31b. UNITED STATES OF AMERICA

31c. DATE

BY

Section 00 00 00 - Procurement and Contracting Requirements

Instrument Name: C0120-Contract [570103] FTC Fire Station

Design Build to Budget Construction of a Fire Station in Fort Campbell, Kentucky. Design and Construct a required non-standard one-company satellite fire station to serve the Sabre Airfield. The fire station will contain a kitchen and dining area, sleeping areas, storage area, training room, laundry, physical training room, latrines and apparatus room. The supporting facilities include electrical, heating and air conditioning (approximately 15 tons), basic landscaping and site development, information systems, security/scan system for AT/FP, and an area for firetruck basic maintenance and cleaning. Access for the handicapped will be provided.

BLOCK 10 CONTINUATION PAGE

Funds are not presently available for this acquisition. No contract award will be made until appropriated funds are made available.

Technical inquiries and questions relating to the proposal procedures or bonds are to be submitted via Bidder Inquiry in ProjNet at <http://projnet.org/projnet>. Please see Section 00 21 00, ProjNet Instructions / Offeror's Questions and Comments for further instructions.

The Government is requiring electronic submission of proposals. Please follow the provided instructions precisely. Please see Section 00 21 00, Electronic Proposal Submission Instructions.

An organized Site Visit will be held for the selected offerors following Phase II Amendment. Site Visit information will be provided in FAR 52.236-27 Alt I as part of the Phase II amendment.

NOTICE TO POTENTIAL BIDDERS/OFFERORS: In accordance with DFARS 204.7302, Contractors and subcontractors are required to provide adequate security on all covered contractor information systems.

Contractors are required to implement National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 by inclusion of clause at 252.204-7012 DEV, Safeguarding Covered

Defense Information and Cyber incident Reporting are required at time of award to have at least a Basic NIST SP 800-171 DoD Assessment that is current (i.e., not more than 3 years old unless a lesser time is specified in the solicitation).

SPRS provides storage and access to the NIST SP 800-171 assessment scoring information. To access the NIST SP 800-171 Assessments module, users must be registered in the Procurement Integrated Enterprise Environment (PIEE) <https://piee.eb.mil/> and be approved for access to Supplier Performance Risk System (SPRS).

The NIST SP 800-171 DoD Assessment Methodology is located at:
<https://www.acq.osd.mil/asda/dpc/cp/cyber/safeguarding.html#nistSP800171>

Vendor Help and Training Tutorials are available at <https://www.sprs.csd.disa.mil/nistsp.htm>

The term bid and proposal are used interchangeably in industry and may be used interchangeably throughout this Solicitation.

Please note, page numbering in this document may not be accurate.

All days are to be considered calendar days, unless otherwise noted.

Section 00 10 00 - Solicitation, Contract Line Item Number (CLIN) Schedule

Additional Information/Notes

Design Build to Budget (DB2B) - FTC Fire Station located at Fort Campbell, KY.

Estimated Construction cost is between \$5,000,000.00 and \$10,000,000.00 in accordance with FAR 36.204

NAICS Code is 236220. Size Determination is \$45M. Please note that business size in SAM is determined by the NAICS code. If the vendor size is not listed correctly for a particular NAICS code in SAM, the business will be considered other than a small business.

This is a full and open procurement. In accordance with the Federal Acquisition Regulation (FAR) 19.1307, this project requires the HUBZone 10% price evaluation.

Offerors must comply with the requirements of FAR 52.204-7, 52.204-8, 52.232-33, and any other contractor registration and online representations and certification requirements in this solicitation through the System for Award Management (SAM), available at <https://sam.gov/>. PLEASE NOTE: SAM is completely free of charge for both registrants and users. Amendments will be available from the website by download only.

*** END OF NARRATIVE ***

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	C0120-Contract [570103] (P&D used for zero-dollar PR&C) FTC Fire Station- Design: All work and labor required to design the Sabre Airfield Fire Station and Rescue at Ft. Campbell, KY. Project Code: 570103 Pricing Arrangement: Firm Fixed Price	1	null		



00 10 00

PRICE BREAKOUT SCHEDULE

02/13

OFFEROR'S NAME: _____

CONTRACT LINE ITEM SCHEDULE

Line Item No.	Description	Unit	Amount
<u>BASE PROPOSAL</u>			
0001.	Design: All work and labor required to design the Sabre Airfield Fire Station and Rescue.	Job	\$ _____
0002.	Construction of Sabre Airfield Fire Station and Rescue: Fire station building, site prep, site improvements, site demolition, water service, sewer service, gas service, electric service and site lighting	Job	\$ _____
0003.	Water Utilities	Job	\$ <u>\$214,775.00</u>
0004.	Gas Utilities	Job	\$ <u>\$41,850.02</u>
0005.	Power/Lighting Utilities	Job	\$ <u>\$374,744.00</u>
Total Base Proposal			\$ _____

NOTES FOR CONTRACT LINE ITEM (CLIN) SCHEDULE

NOTE NO. 1. To better facilitate the receipt and proposal process, all modifications to proposals are to be submitted on copies of the latest Contract Line Item (CLIN) schedules as published in the solicitation or the latest amendment thereto. In lieu of indicating additions/deductions to line items, all Offerors should state their revised prices for each item.

NOTE NO. 2. Offerors must insert a price on all numbered items of the CLIN Schedule. Failure to do so may result in the offer being unacceptable.

NOTE NO. 3 Price Breakout Schedule is only being provided for informational purposes only as Phase I does not include pricing information.

--END OF CLIN SCHEDULE--

Section 00 21 00 - Instructions

PROJNET INSTRUCTIONS

OFFEROR'S QUESTIONS AND COMMENTS

Technical inquiries and questions relating to proposal procedures or bonds are to be submitted via Bidder Inquiry in ProjNet at <http://www.ProjNet.org/ProjNet>. As noted below, offerors shall not submit their proposals via ProjNet. Offerors shall submit their proposals in accordance with the provisions stated in the solicitation. To submit and review bid inquiry items, bidders will need to be a current registered user or self-register into system.

The Solicitation Number is: W912QR26RA031

The Bidder Inquiry Key is: FN5HZS-2Q3KQX

Specific Instructions for ProjNet Bid Inquiry Access:

1. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
2. Identify the Agency. This should be marked as USACE.
3. Key. Enter the Bidder Inquiry Key listed above.
4. Email. Enter the email address you would like to use for communication.
5. Select Continue. A page will then open stating a user account was not found and will ask you to create one using the provided form.
6. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
7. Select Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Specific Instructions for Future ProjNet Bid Inquiry Access:

1. For future access to ProjNet, you will not be emailed any type of password. You will utilize your Secret Question and Secret Answer to log in.
2. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
3. Identify the Agency. This should be marked as USACE.
4. Key. Enter the Bidder Inquiry Key listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Select Continue. A page will then open asking you to enter the answer to your Secret Question.
7. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

From this page you may view all bidder inquiries or add an inquiry.

Bidders will receive an acknowledgement of their question via email, followed by an answer to their question after it has been processed by our technical team.

Offerors are requested to review the specification in its entirety and to review the Bidder Inquiry System for answers to questions prior to submission of a new inquiry.

The call center operates weekdays from 8AM to 5PM U.S. Central Time Zone (Chicago). The telephone number for the Call Center is 800-428-HELP.

Information concerning the status of the evaluation and/or award will NOT be available after receipt of bids/proposals.

NOTES:

1. Offerors shall not submit their proposals via ProjNet, but in accordance with the provisions stated in the solicitation. Any questions regarding acceptable means of submitting offers shall be made directly to the Contract Specialist identified in the solicitation.

2. Government responses to technical inquiries and questions relating to proposal procedures or bonds that Are submitted to ProjNet in accordance with the procedures above are not binding on the Government unless an amendment is issued on Standard Form 30. In the case of any conflicts, the solicitation governs. Any changes or revisions to the solicitation will be made by formal amendment. Government responses will be limited to: (a) Notice that an amendment will be issued; (b) Reference to an existing requirement contained in the solicitation; or (c) Notice that a response is not necessary.
3. The ability to enter technical inquiries and questions relating to proposal procedures or bonds will be disabled ten (10) business days prior to the closing date stated in the solicitation. No Government responses will be entered into the ProjNet system within five (5) business days prior to the closing date stated in the solicitation.

ELECTRONIC PROPOSAL SUBMISSION

Proposals: ALL SUBMISSIONS TO THIS PROPOSAL ANNOUNCEMENT SHALL BE SUBMITTED ELECTRONICALLY THROUGH THE PROCUREMENT INTEGRATED ENTERPRISE ENVIRONMENT (PIEE) SOLICITATION MODULE. No paper copies, CD-ROMs or facsimile submissions will be accepted. Electronic Proposal Submission is required through the PIEE-SOLICITATION MODULE (<https://piee.eb.mil/>). Instructions for uploading proposals are as follows:

1. Register in PIEE:

- a. Navigate to <https://piee.eb.mil/>
- b. Select Register [top right]
- c. Select Vendor
- d. Create a User ID and Password and follow the prompts [next]
- e. Create Security Questions [next]
- f. Complete your User Profile Information [next]
- g. Complete your Supervisor or Approving Official Information [next]
- h. Complete Roles
 - i. Step 1. Select SOL-Solicitation
 - ii. Step 2. Select Proposal Manager
 - iii. Step 3. Click Add Roles
 - iv. Step 4. Fill in our Location Code (CAGE Code) [next]
- i. Provide a justification for your registration [next]
- j. Follow the remaining prompts to submit your registration

2. Log into PIEE and select the Solicitation Icon.

3. Enter search criteria to find the solicitation. (Search Criteria can be the complete solicitation number, Solicitation Open Date, Response Due Date, Product or Service Code, NAICS, Set Aside code, Place of Performance Zip Code, Contracting Office DODAAC, or Status)

4. The search results display. Select the Solicitation Number link to open the solicitation.

5. The solicitation displays. The information is view only.

6. Scroll down to see the Contract Information and Attachments. The Attachments can be viewed by selecting the File link. Scroll back up to the top of the screen and click the Offer tab.

7. Click the Offer tab to Add and review current offers on the Solicitation. Click the Add button to add an offer to the Solicitation.

8. Select the applicable Cage Code for which submitting the proposal for. The list is prefiltered based on the Cage in the Proposal Manager's profile.

9. It is important that interested parties CAREFULLY ensure their electronic files adhere to the following naming convention:

- a. **W912QR26RA031-FIRMNAME-VOLUME I**
- b. **W912QR26RA031-FIRMNAME-VOLUME II**

Each file name shall begin with the solicitation number followed by the firm's name and a brief file description. Please see examples above.

File Organization: Although hard copies are not accepted, each file shall be clearly indexed, and logically assembled. Font size shall be 11 or larger. Pages shall be letter sized (larger page sizes (such as 11 x17 foldouts, etc.) will be counted as two pages. Proposals shall be in a narrative format, organized and titled so that each section of the proposal follows the order and format of the factors. Information presented should be organized so as to pertain to only the evaluation factor in the section that the information is presented. Information pertaining to more than one evaluation factor should be repeated in the each section for each factor.

Upload Completion & Deadline: Interested parties shall submit responses no later than the date specified on the solicitation document. The time & date of proposal receipt will be the upload completion delivery time & date recorded within PIII-Solicitation. Do not assume that electronic submission will occur instantaneously. Large files (e.g. 10MB or more) will take some time to upload. Offerors should time their upload effort with prudence by not waiting until the last few minutes—this will allow for unexpected delays in the transmittal process. Offerors are encouraged to keep a copy of the upload confirmation for their record. Submissions after the deadline will be considered late and will be processed in accordance with FAR 15.208.

Electronic Files: Files shall be in their native format (i.e. doc, xls, ppt, etc.), or if in pdf format, shall be in searchable text. Text and graphics portfolios of the electronic copies shall be in a format readable by Microsoft Office or Adobe applications. Data submitted in a spreadsheet format shall be readable by MS Excel (all cells and formulas should be unlocked). Any information, presented in a proposal that the Offeror wants safeguarded from disclosure to other parties must be identified and labeled in a accordance with the requirements of Provision “FAR 52.215-1, Instructions to Offerors – Competitive Acquisition (Nov 2021),” subpart (e), which is found in 00 21 00 Instructions of the RFP. The Government will endeavor to honor the restrictions against release requested by Offerors, to the extent permitted under United States law and regulations.

10. Upload the attachments that comprise the proposal by selecting Choose Files link.

11. After entering all necessary information enter a Signature Date and Click the Signature button.

12. The Sign Document pop-up will be displayed requiring the user to enter a Digital Pin and One Time Password (OTP). Click the Sign and Submit button to continue.

13. After successfully adding the Proposal a success message of the submission will be displayed and the proposal displayed collapsed. Users may expand and view all their proposals on a Solicitation.

The Procurement Integrated Enterprise Environment (PIEE) help desk may be reached by calling telephone number 866-618-5988 for assistance.

Section 00 21 00 - Instructions

Electronic proposal submission/projnet

*** END OF NARRATIVE ***

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	2026-02		
52.214-34	Submission of Offers in the English Language.	1991-04		
52.214-35	Submission of Offers in U.S. Currency.	1991-04		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation)	2026-02		
52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Deviation)	2026-02		
52.222-5	Construction Wage Rate Requirements-Secondary Site of the Work. (Deviation)	2026-02		
52.225-10	Notice of Buy American Requirement-Construction Materials.	2014-05		
52.232-28	Invitation to Propose Performance-Based Payments.	2000-03		

52.233-2 Service of Protest. (Deviation) 2026-02

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	2023-11		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	2023-01		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.216-1	Type of Contract. (Deviation)	2026-02		

Type of Contract (Feb 2026) (Deviation)

The Government contemplates award of a Firm Fixed Price contract resulting from this solicitation.

(End of provision)

52.252-1	Solicitation Provisions Incorporated by Reference.	1998-02		
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Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

The full text of FAR clauses and provisions (numbered as 52.XXX-XX) can be found at this site:

<https://www.acquisition.gov/browse/index/far>

The full text of DFARS clauses and provisions (numbered as 252.XXX-XX) can be found at this site:

<https://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of provision)

52.252-3	Alterations in Solicitation.	1984-04
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Alterations in Solicitation (Apr 1984)

Portions of this solicitation are altered as follows:

(End of clause)

52.252-5	Authorized Deviations in	2020-11
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Provisions.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any (48 CFR Chapter) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7025	Notice of Cybersecurity Maturity Model Certification Level Requirements.	2025-11		

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)", and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) Cybersecurity Maturity Model Certification (CMMC) level. The CMMC level required by this solicitation is: ____ [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32

CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) Plan of action and milestones. If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) CMMC unique identifiers. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7012 Requirements for Submission of 2018-01
Proposals via Electronic Media.

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: PDF

in PLEE Portal[Insert media format, e.g., electronic spreadsheet format, electronic mail, etc.]

(End of provision)

Section 00 22 00 - Supplementary Instructions

Evaluation Criteria

*** END OF NARRATIVE ***

Section 00 22 16 – Procedures for Submittal of Offers and Proposal Evaluation Criteria for Phase I

1. Overview.

- 1.1 The intent of this solicitation is to select one contractor for the Design and Construction of the Fort Campbell Fire Station, located in Fort Campbell, Kentucky. Design and Construct a required non-standard one-company satellite fire station to serve the Sabre Airfield. The fire station will contain a kitchen and dining area, sleeping areas, storage area, training room, laundry, physical training room, latrines and apparatus room. The supporting facilities include electrical, heating and air conditioning (approximately 15 tons), basic landscaping and site development, information systems, security/scan system for AT/FP, and an area for firetruck basic maintenance and cleaning. Access for the handicapped will be provided.
- 1.2 Design Build to Budget (DB2B) delivery method establishes a fixed construction cost limit (CCL). The CCL for this project is \$7,274,000.00. Offerors are challenged to propose the best possible technical solution that meets the performance requirements outlined in the solicitation at the CCL. The government intends to award to the contractor that provides the best value, defined as the optimal combination of technical solution and project scope, at the CCL.

The DB2B delivery method consists of the following distinct phases and steps. The phases correlate to Phase I and Phase II in section 00 22 16 and section 00 22 18 respectively.

Phase I:

- 1) Government issues Request For Proposal (RFP) with the Phase I requirements.
- 2) Government evaluates Phase I proposals against the criteria outlined in Section 00 22 16 and down selects the most highly qualified offerors to proceed to Phase II.
- 3) A draft Phase II RFP is sent to each down selected offeror from Phase I.
- 4) Government holds a series of up to three (3), 3-hour proprietary meetings with each offeror invited to participate in Phase II to refine the project requirements and Phase II RFP.
 - a) During these meetings, the Government will present an overview of the requirements. The offeror will be expected to discuss its design concepts and engage in a dialogue regarding project scope, schedule, and budget. This collaborative process will aid the Government in refining the final RFP requirements.
 - b) Between meetings, offerors will have approximately two to three weeks to refine their concepts. The Government may also refine the Phase II RFP requirements during this time. Each subsequent proprietary meeting is intended to further develop and clarify the project scope, schedule, and budget.
 - c) The rules of engagement for these meetings are as follows:
 - i) A Non-Disclosure Agreement (NDA) will be required for all participants.

- i) Equal meeting times will be provided for all offerors (maximum of three (3)-hours per meeting).
- i) These meetings are not part of the proposal evaluation; only the final written proposal submissions will be evaluated.
- i) Discussions held during the Phase I meetings are not contractually binding. Only formal amendments to the solicitation and the offeror's final revised proposal are contractually binding. Offerors may submit Requests for Information (RFI) after the meetings.
- i) Responses to non-proprietary RFI's will be shared with all down-selected offerors.
- i) The Government will provide meeting minutes outlining key takeaways to each respective offeror. Meetings will NOT be recorded.
- i) The Government will decide whether meetings are held in person or virtually.

Phase II:

- 1) Government issues final Phase II RFP via amendment.
- 2) Government evaluates Phase II proposals against the criteria outlined in Section 00 22 18.
- 3) Government conducts discussions with offerors, if determined necessary.
- 4) Government awards contract to the contractor that offers the best value to the Government.

- 1.3 This project is subject to the availability of funds (SAF). No award will be made under this solicitation until funds are available.

2. Submittal of offers.

- 2.1 Offerors submitting proposals for this project should limit submissions to data essential for evaluation of proposals so that a minimum of time and monies will have been expended in preparing information required herein. However, in order to be effectively and equitably evaluated, the proposals must include information sufficiently detailed to clearly describe the offeror's capability for successfully completing the solicited project. Requirements stated in this RFP are minimums.
- 2.2 Offerors shall submit their proposals electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation. Please follow the instructions precisely as proposals must complete the upload no later than the time and date specified in Block 13 of Standard Form 1442. * **NOTE:** The Louisville District is in the Eastern Time Zone. NO OTHER TRANSMISSION METHODS (EMAIL, FACSIMILE, REGULAR MAIL, HAND CARRIED, ETC.) WILL BE ACCEPTED.
- 2.3 The Government is using a two-phase procurement approach for this Design-Build project. For Phase I, offerors are required to submit a proposal consisting of the information identified in paragraphs 2.4 and 2.5 below. All proposal materials shall be electronic in accordance with the Proposal Submission Instructions in Section 0 21 00 of the solicitation. Phase I proposal sections should parallel the submission requirements identified herein.

2.4 The complete Phase I Volume I shall be submitted electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation and include the following information:

- Volume I – Factor I: Past Performance
 - Prime Contractor
 - A/E Designer of Record (DOR)
- Volume I – Factor II: Technical Approach

* **NOTE:** Failure to place the required submission information under the appropriate tab may result in a lower rating if the evaluators cannot readily find the appropriate information. Any specified page limits will be strictly adhered to and enforced. Information submitted that exceeds the specified limit(s) will not be evaluated.

2.5 Phase I Volume II shall be submitted electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation and shall include the following information:

- Volume II – Tab A: Standard Form 1442
- Volume II – Tab B: Joint Venture Agreements
- Volume II – Tab C: Evidence of Ability to Obtain Bonding and Proof of Financial Ability
- Volume II – Tab D: Pre-Award Information

* **NOTE:** Phase I does NOT involve pricing submission.

3. Proposal Evaluation Process.

3.1 A SSEB comprised of representatives of the USACE, User/Customer, and other required personnel will evaluate the proposals. Offerors are advised that the technical evaluation and rating of proposals will be conducted in strict confidence. The number and identities of offerors are not revealed to anyone who is not involved in the evaluation and award process or to other offerors. Proposals will be evaluated based on the factors described herein, and the basis of award is a Best Value Trade-Off, as stated in paragraph 1.2 above. Evaluations will be based on the content of the information contained in the submitted proposal, corrections provided within the time frame of the solicitation, information obtained from other sources (i.e., past performance reviews, references), and responses to addenda/amendments to this solicitation only. Proposals will be evaluated compared to the solicitation and not against one another. The Government will not consider any information or data incorporated by reference. Identity and other information about the SST members are confidential and members will not be available for contact or discussion at any time.

The SST will evaluate proposals and assign a consensus rating for each proposal Factor. Offerors are cautioned to put forth their best efforts for the Phase I submission and to furnish all information clearly and completely to allow the Government to determine their performance capabilities. Offerors should not assume they will have an opportunity to

clarify or correct anything in their proposal after the Phase I deadline and any extensions expire.

- 3.2 The evaluation process for Phase I essentially consists of two parts: proposal compliance/responsibility review and technical evaluation.
- 3.2.1 Proposal Compliance / Responsibility Review: This is an initial review to ensure that all required forms and certifications are complete and that the offeror is financially capable of sustaining performance under the contract and is able to obtain the required level of performance and payment bonds from an acceptable surety.
- 3.2.2 Technical Evaluation: The SSEB will evaluate and rate Volume I proposals against the RFP requirements. Factor I – Past Performance will be rated using Paragraph 4.5 Tables 1 and 2. The rating will be based on overall confidence in performance, with the final confidence assessment rating based on the extent of recent, relevant past experience and the quality of the offeror’s performance. Factor II – Technical Approach will be rated using Paragraph 4.5, Table 3.

4. Proposal Information and Related Evaluation Factors.

- 4.1 Phase I proposals will be evaluated in accordance with the factors below, listed in relative order of importance. The initial offer and subsequent Government evaluation will be the basis for the Contracting Officer’s selection of a target of the three (3) of the most highly qualified offerors to continue on to Phase II of the procurement.

- 4.2 **Volume I – Factor I – Past Performance** 1st
 - Prime Contractor Approximately Equal to A/E DOR
 - A/E Designer of Record (DOR) Approximately Equal to Prime

- 4.3 **Volume I – Factor II – Technical Approach** 2nd

- 4.4 **Volume II – Business Information**

Tab A Standard Form 1442	Not Rated
Tab B Joint Venture Agreement	Not Rated
Tab C Evidence of Ability to Obtain Bonding and Proof of Financial Ability	Not Rated
Tab D Pre-Award Information	Not Rated

- 4.5 **Ratings**

Evaluators will apply the rating for the definition that most closely matches the evaluation.

TABLE 1

Past Performance Relevancy Ratings	
Rating	Description

Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

TABLE 2

Performance Confidence Assessments Ratings	
Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

TABLE 3

Combined Technical/Risk Ratings		
Color	Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.

Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation and, thus Proposal contains one or more deficiencies and is unawardable, and/or risk of unsuccessful performance is unacceptably high.

4.6 Definitions

1. Adverse Past Performance. Past performance information that supports a less than satisfactory rating on any evaluation. Adverse past performance that must be addressed with Offerors includes unfavorable comments received from sources such as those received from respondents from past performance questionnaires or interviews that have not been finalized within a formal rating system.
2. Clarifications. Exchanges between the Government and offerors where offerors are given the opportunity to resolve minor or clerical errors or clarify certain aspects of their proposal. Clarifications can be used to enhance the Government's understanding of a proposal, allow reasonable interpretation of a proposal, or facilitate the Government's evaluation process. See RFO 15.202(a)(2).
3. Deficiency. Any part of an offer that does not conform to a material requirement of a RFP. A material requirement is one that affects price, quantity, quality, or delivery, or that the RFP requires to be met at the time of proposal submission. See RFO 15.001.
4. Performance Confidence Assessment. An evaluation of the likelihood (or Government's confidence) that the offeror will successfully perform the solicitation's requirements; the evaluation is based upon past performance information.
5. Recency. As it pertains to past performance information, a measure of the elapsed time since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant.
6. Relevancy. As it pertains to past performance information, a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood the past performance is an indicator of future performance.
7. Risk. As it pertains to source selection, the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

8. Significant Strength. An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

9. Significant Weakness. A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See RFO 15.001.

10. Strength. An aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

11. Uncertainty. Any aspect of a non-cost/price factor proposal for which the intent of the offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).

12. Weakness. A flaw in the proposal that increases the risk of unsuccessful contract performance. See RFO 15.001.

5. Volume I – Factor I: Past Performance

5.1 Submission Requirements:

5.1.1 Prime Contractor:

Provide descriptions of up to three (3) projects substantially complete or completed by the Prime Contractor within the last six (6) years (from the solicitation issue date) that are similar to this project in size and scope. Projects completed more than six (6) years before the solicitation issue date may be considered for evaluation purposes but may lessen the overall relevancy rating for that project. Projects are considered substantially complete if enough work has been performed such that it demonstrates the ability to successfully complete all phases of the project. If the project is not yet completed, describe the work left to be completed. If commissioning is not finalized, provide its current status. An Indefinite Delivery Indefinite Quantity (IDIQ) contract may be submitted only if a single task order could be considered similar to this project. Task orders may not be combined in order for the project to be considered similar.

5.1.2 Projects considered similar in size are design-build new construction projects that include a minimum of 7,500 square feet.

5.1.3 Projects considered similar in scope to this project include design-build new construction of buildings similar to:

- a) Industrial Shop Facilities or
- b) Vehicle Maintenance Shops (VMS) or
- c) Fire Stations

NOTE: Design-Bid-Build projects may be submitted; however, they may be considered less relevant than Design-Build projects.

NOTE: Renovation projects may be submitted; however, they may be considered less relevant than new construction projects.

- 5.1.4 The prime contractor must have self-performed at least fifteen (15) percent of the direct contract labor (including testing and layout personnel), exclusive of other general conditions or field overhead personnel, material, equipment, or subcontractors to be considered similar.
- 5.1.5 Additional consideration may be given for projects that contain the following features:
- a) Established working relationship with the proposed DOR on previous design-build projects.
 - b) Design-build new construction projects that demonstrate experience with military installations/bases.
 - c) Experience with construction project(s) for USACE.
- 5.1.6 The following information shall be provided for each project:
- a) Project Title, Location, and Contract Number/Unique Entity ID (UEI)
 - b) Current percentage of construction complete (includes commissioning activities) and the date it was or will be complete
 - i. For projects that are not yet complete, provide description of work remaining to be completed.
 - ii. If commissioning is not finalized, provide its current status.
 - c) Scope of the project, to include purpose/use of facility
 - d) Size of the project, differentiate square footage of new construction versus renovation if the project includes both.
 - e) Type and percentage of work that was self-performed
 - f) If the project was Design-build or Design--bid-build.
 - g) Whether the project was renovation, new construction, or both.
 - h) Dollar Value of Project
 - i) Customer primary point of contact (POC) and alternate POC (name, relationship to project, agency/firm affiliation, city, state, current and correct phone number, and current and correct email address)

- 5.1.7 For this factor, also include any ratings, letters, awards, etc. that support past performance on these projects. Any of this information that is submitted shall clearly identify to which of the submitted projects it pertains. A sample Past Performance Questionnaire (PPQ) is attached for your convenience. If used, the Past Performance Questionnaire must be submitted by the offeror with the proposal submission and not sent directly to the agency by reference. For each project, the offeror may provide information on problems encountered on the identified contracts and the offeror's respective corrective action.

* **NOTE**: For purposes of evaluating past performance, the Prime Contractor is defined as the contractor identified in Block 14 of the Standard Form (SF) 1442. Projects performed by contractors other than the offeror, including, but not limited to, teaming partners, subcontractors, and sister-companies will not be evaluated for past performance, unless those other contractors are part of a joint venture offeror as demonstrated by a signed joint venture (JV) agreement, or unless those other contractors are affiliates of the offeror as defined in accordance with 13 CFR 121.103 and with proof of affiliation provided with the offer. If more than one contractor is listed in Block 14, or the offeror listed in Block 14 is a Joint Venture (JV), then a signed JV agreement must be submitted with the proposal, and the JV shall be registered as such in the System for Award Management (SAM) as a legal entity separate from the individual joint venture members. However, each party of the JV must submit their own Unique Entity Identifier (UEI) number with the proposal.

In addition to the joint venture agreement, small business offerors submitting a proposal as a Mentor-Protégé JV under the SBA Mentor-Protégé program (MPP) shall submit a copy of their SBA-approved Mentor-Protégé agreement under Volume II, Tab B of the proposal. Projects performed by other contractors than the offeror, such as teaming partners or subcontractors, will not be evaluated for past performance, unless those other contractors are part of a JV offeror as demonstrated by a signed JV agreement. If the offeror represents the combining of two or more companies as a JV for the purpose of this RFP, each company in the JV may submit project examples, but the total submitted by the JV will not exceed three (3).

Relevant past performance information provided for affiliates of small business offerors will be considered. Affiliates (as defined by RFO 2.101) means associated business concerns or individuals if, directly or indirectly either one controls or can control the other; or third-party controls or can control both. Affiliation will be determined in accordance with 13 CFR 121.103. In determining whether affiliation exists, the Government will consider the totality of the circumstances and may find affiliation even though no single factor is sufficient to constitute affiliation. If an offeror is submitting the past performance of an affiliate, the offeror must submit proof of affiliation pursuant to 13 CFR 121.103.

5.1.8 A/E Designer of Record (DOR):

Provide descriptions of up to three (3) projects that have been constructed (*i.e.*, construction is substantially complete) within the last six (6) years (from the solicitation issue date) that are similar in size and scope (see paragraphs 5.1.2 and 5.1.3 above). In order to be considered similar, the proposed A/E firm must have been the DOR on the submitted project. The listed design firm must be used on the solicited project. No deviations will be permitted unless approved by the Contracting Officer. Indicate any

previous working relationship with the prime contractor. In addition to the above and below, provide the information requested in paragraphs 5.1.6. and 5.1.7. The offeror must affirmatively state who their proposed DOR for the project will be and provide the DOR's Unique Entity ID (UEI) number and CAGE Code.

- 5.1.9 Additional consideration may be given for the DOR projects that contain the following feature:

a) Experience with USACE Design-build Criteria (i.e., AT/FP, UFC, Specs Intact)

* **NOTE:** There is a page limit of ten (10) 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides, for the Management Plan Factor.

5.2 Evaluation Criteria:

- 5.2.1 For both the Prime and DOR, the SSEB will first evaluate the relevancy of recent past performance identified in the proposal in response to paragraph 5.1 above. By using the criteria identified above, the SSEB will determine how relevant a past project is when compared to the scope, size, and magnitude of effort and complexities of the solicited project. A relevancy rating will be assigned to each submitted project using the Past Performance Relevancy Ratings table in Paragraph 4.5, Table 1.
- 5.2.2 For both Prime and DOR, the SSEB will next review how well the offeror performed on those projects. The Government reserves the right to check any or all cited references to verify supplied information and to assess owner satisfaction. The Government also reserves the right to not contact the provided references. In addition to the information submitted by the offeror, the Government reserves the right to review any other sources of relevant information for evaluating past performance, including projects other than those submitted by the offeror. The Government will, at a minimum, review past performance information retrieved through the Contractor Performance Assessment Reporting System (CPARS), using all CAGE/Unique Entity ID (UEI) numbers. Other sources may include, but are not limited to, past performance information retrieved from inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the offeror.
- 5.2.3 The SSEB will review all past performance information collected for both Prime and DOR. The SSEB will determine the quality of the offeror's performance, general trends, and usefulness of the information and incorporate this information into the performance confidence assessment. The SSEB will assign a final, overall Performance Confidence rating, using the ratings in the Performance Confidence Assessment table above in Paragraph 4.5, Table 2, based on the SSEB's assessment of (1) the degree of the offeror's recent, relevant experience, and (2) how well the offeror performed that experience.

* **NOTE:** The Past Performance of both the Prime and A/E DOR will be weighted approximately equally in the establishment of the overall Performance Confidence rating.

6. Volume I – Factor II: Technical Approach

6.1 Submission Requirements:

- 6.1.1 Collaboration: Provide a narrative that describes the offeror's philosophy and intended management plan for executing this project and integration of USACE Design-Build processes. Clearly and concisely describe the offeror's Design-Build team, and how key members (e.g., Construction PM, Construction Superintendent, Construction Quality Control, SSHO, Design PM, and Design Quality Control) of the team will work collaboratively to ensure timely quality completion of the project. On-site key team members shall be assigned no other duties than the role specified, including those performed for another project/contract.
- 6.1.2 Organization: Describe the firms that compose the offeror's Design-Build team, their resources and how their resources will be utilized, their roles and responsibilities and any contractual arrangements that have been established. Describe the proposed management structure for the Design-Build team, explaining how the design and construction process will be managed and the authorities and the delegations of authority within the Design-Build team.
- 6.1.3 Quality Control: Describe the Design-Build team's quality control approach, corporate systems and capabilities to maintain quality control of the design and construction. Describe the proposed quality control organization, including the proposed staffing plan.
- a) Provide specific information on how you will manage design quality control, track design evolution and changes during design to meet the schedule and to facilitate Government reviews.
 - b) Provide information on how you will handle internal and external requests for information, shop drawings, submittal reviews, progress meetings, site visits, contract completion, closeout, as built, and completion documentation.
 - c) In addition to the required designer-of-record (DOR) roles specified within the RFP for maintaining integrity of the design, describe any other DOR involvement in the quality control process, if any. There is no need to submit a quality control plan as the successful offeror will provide that after award.

* **NOTE**: There is a page limit of ten (10) 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides, for the Management Plan Factor.

6.2 Evaluation Criteria:

- 6.2.1 Collaboration: The Government will evaluate the offeror's understanding of the USACE Design-Build process and how well it has demonstrated its ability to successfully execute design-build projects.
- 6.2.2 Organization: The Government will evaluate clarity and strength of the overall organization, the structure and staffing to execute the entire scope of work. The

evaluation will be based on how well the offeror demonstrates their organizational (i.e., the structure and staffing) ability to successfully execute design-build projects, to include the integration of the Designers of Record and construction firms during design and construction. Proposals demonstrating that construction personnel will be actively involved in the design process may be viewed more favorably by the SSEB.

- 6.2.3 **Quality Control:** The Government will evaluate the offeror's capabilities and understanding of the contractually required quality control processes for both design and construction. The Government will evaluate the strengths of the offeror's proposed system to control and track revisions to the design. The Government will evaluate the role of the designer in maintaining design integrity throughout the process, including its key roles during construction. The Government places value upon continued participation by the designer of record during the construction quality control process.
- 6.3 Offerors are encouraged to tailor their proposal for the Technical Approach for Factor II to demonstrate and describe the working relationship between the prime contractor and DOR and how that team will successfully complete this project. demonstrate this prime contractor and designer approach for successfully completing this project. The SSEB will assess any strengths, weaknesses, or deficiencies and assign a final, overall adjectival rating using the ratings found in Section 4.5, Table 3 - Combined Technical / Risk Ratings.

7. Volume II – Business Information

7.1 Tab A - Standard Form 1442.

7.1.1 Submission Requirements:

The offeror shall complete and submit Standard Form 1442.

7.1.2 Evaluation Criteria:

Standard Form 1442 will not be rated. The form will be reviewed to determine if required information is provided, amendments are acknowledged, and the offer signed.

*** NOTE: Phase I does NOT involve pricing submission.**

7.2 Tab B – Joint Venture Agreements

7.2.1 Submission Requirements:

If more than one contractor is listed in Block 14, or the offeror listed in Block 14 is a joint venture (JV), the offeror shall be registered in the System for Award Management (SAM) as a legal entity separate from the individual joint venture members. However, each member of the JV must submit its own Unique Entity ID (UEI) with the proposal. A copy of the offeror's signed joint venture agreement shall be submitted with the Phase I proposal.

In addition to the JV agreement, Small Business offerors (e.g., 8(a), HUBZone, SDVOSB, etc.) submitting a proposal as a Mentor-Protégé JV under the SBA Mentor-

Protégé program (MPP) shall submit a copy of their SBA-approved Mentor-Protégé Agreement. Joint Venture agreements and approved 8(a) Mentor-Protégé agreements must be submitted with the proposal.

7.2.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated. Small Business Joint Venture Agreements and Mentor-Protégé agreements must comply with the relevant regulations in Title 13 of the Code of Federal Regulations in order for an offeror to be eligible for any small business-related price preference.

7.3 **Tab C – Evidence of Ability to Obtain Bonding and Proof of Financial Ability**

7.3.1 Submission Requirements:

- a) Financial Capability. Submit Proof of Financial Ability (most recent financial statement covering assets and liabilities). Include the name, address, and telephone number of offeror's banking institution. If the offeror is a joint venture, submit this information for all joint venture members.
- b) Bonding Capability. Submit information showing offeror's ability to be bonded for this project. Include the name, address, and telephone number of the offeror's bonding company, which must be on the approved Treasury list available at <https://fiscal.treasury.gov/surety-bonds/list-certified-companies.html>.

7.3.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated. See RFO Part 28 for information related to bonds.

If the offeror is a joint venture, submit this information for all joint venture members.

7.4 **Tab D – Pre-Award Information**

7.4.1 Submission Requirements:

- a) The offeror shall submit one completed copy of Section 00 45 00, Representations and Certification.
- b) The offeror shall submit the following information:
 - i. Number of years the firm has been in business
 - ii. Name, address, and telephone numbers of two credit/trade references
 - iii. A list of present commitments, including the dollar value

7.4.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated.

SECTION 00 22 18
PROCEDURES FOR SUBMITTAL AND EVALUATION OF OFFERS FOR PHASE TWO

**Section 00 22 18 is issued as reference only during Phase I and subject to change when Phase II is issued.

1. Overview.

- 1.1 The intent of this solicitation is to select one contractor for the Design and Construction of the FTC Fire Station, located in Fort Campbell, Kentucky. Design and Construct a required non-standard one-company satellite fire station to serve the Sabre Airfield. The fire station will contain a kitchen and dining area, sleeping areas, storage area, training room, laundry, physical training room, latrines and apparatus room. The supporting facilities include electrical, heating and air conditioning (approximately 15 tons), basic landscaping and site development, information systems, security/scan system for AT/FP, and an area for firetruck basic maintenance and cleaning. Access for the handicapped will be provided.
- 1.2 DB2B delivery method establishes a fixed CCL. The CCL for this project is \$7,274,000.00. Offerors are challenged to propose the best possible technical solution that meets the performance requirements outlined in the solicitation at the CCL. The government intends to award to the contractor that provides the best value, defined as the optimal combination of technical solution and project scope, at the CCL.

The DB2B delivery method consists of the following distinct phases and steps. The phases correlate to Phase I and Phase II in section 00 22 16 and section 00 22 18, respectively.

Phase 1:

- 1) Government issues Request For Proposal with Phase I requirements.
- 2) Government evaluates Phase 1 proposals against the criteria outlined in Section 00 22 16 and down selects the most highly qualified offerors to proceed to Phase II.
- 3) A draft Phase II RFP is sent to each down selected offeror from Phase I.
- 4) Government holds a series of up to three (3), 3-hour proprietary meetings with each offeror invited to participate in Phase II to refine the project requirements and Phase II RFP.
 - a) During these meetings, the Government will present an overview of the requirements. The offeror will be expected to discuss its design concepts and engage in a dialogue regarding scope, schedule, and budget. This collaborative process will aid the Government in refining the final RFP requirements.
 - b) Between meetings, offerors will have approximately two to three weeks to refine their concepts. The Government may also refine the Phase II RFP requirements during this time. Each subsequent proprietary meeting is intended to further develop and clarify the project scope, schedule, and budget.
 - c) The rules of engagement for these meetings are as follows:

- i) A Non-Disclosure Agreement (NDA) will be required for all participants.
- i) Equal meeting times will be provided for all offerors (maximum of 3-hours per meeting).
- i) These meetings are not part of the proposal evaluation; only the final written proposal submissions will be evaluated.
- i) Discussions held during the Phase I meetings are not contractually binding. Only formal amendments to the solicitation and the offeror's final revised proposal are contractually binding. Offerors may submit Requests for Information (RFI) after the meetings.
- i) Responses to non-proprietary RFI's will be shared with all down-selected offerors.
- i) The Government will provide meeting minutes outlining key takeaways to each respective offeror. Meetings will NOT be recorded.
- i) Meetings may be held in person or virtual.

Phase II:

- 1) Government issues final Phase II RFP via amendment.
- 2) Government evaluates Phase II proposals against the criteria outlined in Section 00 22 18.
- 3) Government conducts discussions with offerors, if determined necessary.
- 4) Government awards contract to the contractor that offers the best value to the Government.

1.3 The Phase I evaluation is an advisory down-select process; therefore, the evaluation factors, ratings, and findings from Phase I will not be carried over into Phase II. The Phase II evaluation will be conducted as a distinct, standalone assessment, and the results of the Phase I evaluation will not be considered in the final source selection decision.

1.4 Phase II of this procurement will be conducted under FAR Part 15. A site visit will be held for these selected offerors invited to participate in Phase II. The selected offerors for Phase II will be invited to submit the information described in Section 00 22 18, Procedures for Submittal of Offers for Phase II, for review and evaluation by the Government. Following the completion of all evaluations, the Contracting Officer will award a firm fixed price contract to the responsible offeror whom the Source Selection Authority determines conforms to the solicitation, is fair and reasonable, and offers the best overall value to the Government, based solely on the Phase II evaluation factors. The Government reserves the right to accept other than the lowest priced offer or to reject all offers. The Government intends to award without discussions but reserves the right to conduct discussions should it be deemed in the Government's best interest.

1.5 This project is subject to the availability of funds (SAF). No award will be made under this solicitation until funds are available.

2. Submittal of Offers.

2.1 Offerors submitting proposals for this project should limit submissions to data essential for evaluation of proposals so that a minimum of time and monies will have been expended in preparing information required herein. However, in order to be effectively and equitably evaluated, the proposals must include information sufficiently detailed to

clearly describe the offeror's capability for successfully completing the solicited project. For Phase II, requirements stated in this Request for Proposal (RFP) are minimum. Proposals should follow in the order of sequence set forth in the RFP.

- 2.2 Offerors shall submit their proposals electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation. Please follow the instructions precisely as proposals must complete the upload no later than the time and date specified in Block 13 of Standard Form 1442.

* **NOTE:** The Louisville District is in the Eastern Time (ET) Zone.

- 2.3 The Government is using a two-phase procurement approach for this Design-build project. Offerors shall submit their proposals electronically for the written proposal in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation. Please follow the instructions precisely as proposals must complete the upload no later than the time and date specified in Block 13 of Standard Form 1442. NOTE: The Louisville District is in the Eastern Time Zone.

- 2.4 Volume I for Phase II shall be submitted and include the following information:

- Volume I – Factor I: Design Narrative
- Volume I – Factor II: Management Plan
- Volume I – Factor III: Small Business Participation Plan

NOTE: Failure to place the required submission information under the appropriate tab (factor) may result in a lower rating if the evaluators cannot readily find the appropriate information. Any specified page limits will be strictly adhered to and enforced. Information submitted that exceeds the specified limit(s) could lead to the offeror receiving a lower rating.

- 2.5 Volume II for Phase II shall be submitted electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation and shall include the following information:

- Volume II – Tab A: Standard Form 1442 and Price Breakout Schedule
- Volume II – Tab B: Subcontracting Plan

3. Proposal Evaluation Process.

- 3.1 A Source Selection Evaluation Board (SSEB) comprised of representatives of the Corps of Engineers, User/Customer, and other required personnel will evaluate the proposals. Offerors are advised that the technical evaluation and rating of proposals will be conducted in strict confidence. Technical (Volume I) proposals will be reviewed and rated without knowledge of the price offered. The number and identities of offerors are not revealed to anyone who is not involved in the evaluation and award process or to other offerors. Proposals will be evaluated based on the factors described herein, and the basis of award is a Best Value Trade-Off, as stated above.

- 3.2 The evaluation process for Phase II essentially consists of four (4) parts: proposal compliance review and responsibility review, technical evaluation, price evaluation, and price/technical trade-off analysis.
- 3.2.1 Proposal Compliance / Responsibility Review: This is an initial review to ensure that both a technical and price proposal were received.
- 3.2.2 Technical Evaluation: The SSEB will evaluate and rate the Phase II Volume I proposals against the RFP requirements. Factors I and II (Design Narrative and Management Plan) will be rated using Table 4 found in Section 4.2. Factor III, Small Business Participation Plan will be rated using Table 5 found in Section 4.2
- 3.2.3 Price Evaluation: The SSEB and Contracting Officer/SSA will evaluate price proposals independent of the technical evaluation. The SSEB will not have access to price information until completion of the technical evaluation.
- 3.2.4 Price/Technical Trade-off Analysis: After all the above evaluations are complete, the Contracting Officer/SSA will compare the relative advantages and disadvantages of technical proposals and compare prices. The Source Selection Authority (SSA) will then consider all factors to select the proposal offering the best value to the Government.

4. Proposal Information and Related Evaluation Factors.

- 4.1 Phase II proposals will be evaluated in accordance with the factors below, listed in relative order of importance. This is a best-value tradeoff procurement where the Government will award a contract to the offeror whose proposal is determined to be the most advantageous to the Government. All evaluation factors, other than price, when combined are significantly more important than cost/price.

As this is a DB2B procurement with a CCL, Price will be evaluated for reasonableness. The Government's objective is to award to the offeror who maximizes the proposed design quality, functionality, and project scope at the CCL.

The proposal submitted in response to the Phase II RFP shall be the offeror's complete and final offer. The Government intends to evaluate proposals and award a contract without conducting formal discussions. Therefore, the offeror's proposal should contain its best terms from a technical and price standpoint. The Government reserves the right to award a contract based on initial proposals received.

NOTE: All non-priced factors combined are approximately equal to price.

Volume I – Factor I: **Design Narrative** Approximately Equal to Factor II

Volume I – Factor II: **Management Plan** Approximately Equal to Factor I

Volume I – Factor III: **Small Business Participation Plan** Less Important than
Factors I and II

Volume II – Price and Business Information

4.2 Ratings

Evaluators will apply the rating for the definition that most closely matches the evaluation.

TABLE 4

Combined Technical/Risk Ratings		
Color	Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation and, thus Proposal contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

TABLE 5

Small Business Participation Plan Ratings	
Rating	Description
Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Unacceptable	Proposal does not meet small business objectives.

4.3 Definitions

1. Clarifications. Exchanges between the Government and offerors where offerors are given the opportunity to resolve minor or clerical errors or clarify certain aspects of their proposal. Clarifications can be used to enhance the Government's understanding of a proposal, allow reasonable interpretation of a proposal, or facilitate the Government's evaluation process. See RFO 15.202(a)(2).

2. **Deficiency.** Any part of an offer that does not conform to a material requirement of a RFP. A material requirement is one that affects price, quantity, quality, or delivery, or that the RFP requires to be met at the time of proposal submission. See RFO 15.001.

3. **Risk.** As it pertains to source selection, the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

4. **Significant Strength.** An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

5. **Significant Weakness.** A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See RFO 15.001.

6. **Strength.** An aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

7. **Uncertainty.** Any aspect of a non-cost/price factor proposal for which the intent of the offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).

8. **Weakness.** A flaw in the proposal that increases the risk of unsuccessful contract performance. See RFO 15.001.

5. Volume I – Factor I: Design Narrative

5.1 Submission Requirements:

- 5.1.1 The Offeror shall submit a Design Narrative that presents their technical solution and demonstrates a comprehensive understanding of the project design requirements. The narrative must contain sufficient information for reviewers with both technical and non-technical backgrounds to become familiar with the proposed solution and the Offeror's ability to satisfy those requirements. The proposal must provide a clear rationale for all aspects of the proposed design concept, its principles, and its benefits relative to achieving the project goals.

The narrative shall provide a clear rationale of the Designer of Record's (DOR) internal design processes, the design submittal process and submittal requirements, the proposed methodology for using Dr. Checks for comment resolution, and the plan for achieving final design completion. Demonstrate a comprehensive understanding of this specific project's requirements and adherence to the performance criteria outlined in the RFP. The proposal should detail how the proposed architectural features, building materials, HVAC solutions, electrical solutions, floor plan, and site layout meet or exceed the RFP requirements within the budget

* **NOTE:** There is a limit of eight (8) 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides, for the Design Narrative factor. Any information that exceeds the page limit will not be evaluated.

5.2 **Evaluation Criteria:**

- 5.2.1 The Design Narrative will be evaluated based on the offeror's understanding of the project design requirements. The design narrative will be evaluated for completeness by including the building features of the RFP as outlined in Section 01 02 Section 01 02 10.00 06 Project Description and Design Requirements.

6.0 **Volume I – Factor II: Management Plan**

6.1 **Submission Requirements**

- 6.1.1 Provide a management plan narrative for the project that describes how your labor, resources, designers, subcontractors, and material suppliers will be managed, supervised, coordinated, and used to ensure successful completion of the project. Offerors are advised that on-site key team members shall be assigned no other duties than the role specified, including those performed for another project/contract. Additionally, the Management Plan shall include the following information:

- a) Identification of at least three (3) most significant project specific risks and demonstrate your mitigation strategy to address those risks.

* **NOTE:** There is a page limit of five (5) 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides for this factor. Any information that exceeds the page limit will not be evaluated. **Certificates and qualifications do NOT count towards the total page limit.**

6.2 **Evaluation Criteria:**

- 6.2.1 Management Plan narratives will be evaluated based on the level of understanding of the work and the involvement the contractor will have in the management, oversight, control, and coordination of the work performed during construction of the project. The Management Plan will be evaluated for how well it demonstrates how the offeror plans to manage this specific project in particular, what critical tasks in this solicitation they believe needs more attention to help mitigate risk, experience managing other USACE projects or a clearly demonstrated understanding of how to successfully manage a USACE project and application of USACE processes, and experience using the Resident Management System (RMS) or a clearly demonstrated understanding of the use of RMS. Narratives that demonstrate a clear understanding of the USACE Design requirements and USACE construction execution processes and provide a thorough approach for successfully managing the solicited project may be rated more favorably by the SSEB.

7. **Volume I – Factor III: Small Business Participation Plan**

7.1 **Submission Requirements**

This factor applies to all offerors regardless of size. The Small Business Participation Plan shall be based on the offeror's best effort and is required to address each of the following areas individually:

- The extent to which the small business programs listed in FAR 19 (small business, small, disadvantaged business, woman-owned small business, HubZone, service disabled veteran owned small business, etc.) are specifically identified in the Small Business Participation Plan.
- The extent of participation of such firms in terms of the value of the total acquisition in %'s for the base year and for each individual option year; the extent of commitment to use such firms (for example, enforceable commitments, i.e., teaming agreements signed, are to be considered more heavily than non-enforceable ones).
- The complexity and variety of the work small firms are to perform on this acquisition.
- The practicality of the Small Business Participation Plan, i.e., aggressive goals.

The Small Business Participation Plan shall be organized as follows:

(1) Prime Contractor type of business (check all that apply):

- ☐ Large
- ☐ Small (also check type of small business)
- ☐ Small Non-Disadvantaged Business
- ☐ Small Disadvantaged Business
- ☐ Woman-Owned Small Business
- ☐ HUBZone Small Business
- ☐ Veteran Owned Small Business
- ☐ Service Disabled, Veteran Owned Small Business

(2) Percentage of your participation as a prime contractor: _____ %

NOTE: Small Business Primes' self-performance counts as Small Business Participation, and small business primes may achieve small business participation goals through their own performance/participation as a prime and/or through subcontracting to other small businesses.

(3) Percentage of total contract value of subcontracts planned for:

	% of Total Contract Value
Large	%
Total Small	%
Small non-disadvantaged	%
Small Disadvantaged	%
Small Woman Owned	%
Small HUB Zone	%
Small Veteran Owned	%
Small Service-Disabled Veteran Owned	%

Each percentage above shall be accompanied by detailed supporting documentation regarding individual commitments.

NOTE: The sum of the percentages of Small Non-Disadvantaged and Small Disadvantaged

should equal the entries for the Total Small; however, the sum of all of the percentages need not equal 100% since the prime is not included and individual subcontractors may be counted towards more than one category.

(4) List of principal supplies/services (be specific) to be subcontracted to:

	Name of Company	Type of Service/Supply
Large		
Small non-disadvantaged		
Small Disadvantaged		
Small Woman Owned		
Small HUB Zone		
Small Veteran Owned		
Small Service-Disabled Veteran Owned		

(5) Prior Performance Information: Provide any information substantiating the offeror's track record of utilizing small business on past contracts.

(6) For Large and Small Businesses provide descriptive information for all small business categories. Any information concerning long-term relationships with Small Business subcontractors, such as mentor-protégé relationships, should be provided.

(7) Extent of Commitment: Provide documentation regarding enforceable commitments to utilize any small business category as defined in FAR Part 19 as subcontractors.

(8) Small Business Subcontracting Plan: Each Large Business Offeror shall provide a Small Business Subcontracting Plan that contains all of the elements required by FAR Clause 52.219-9 Alt II. This Plan shall be submitted separately from the Small Business Participation information required above which applies to both Large and Small Businesses. The Subcontracting Plan is not a requirement for evaluation in source selection but rather a requirement for award to a Large Business. The approved Small Business Subcontracting Plan will be incorporated into any resultant contract(s).

7.2 Evaluation Criteria

This factor applies to all offerors regardless of size.

The Small Business Participation Plan will be evaluated in accordance with Table 4 above based on the offeror's best efforts, the level of small business commitment that is being demonstrated for the proposed acquisition, and the prior level of commitment to utilizing small businesses in performance of prior contracts. The Small Business Participation Plan must meet the minimum Total Small Business Participation goal of 15% of the total contract value (through collective small business participation from any type of small business or sub-category small business). Small business offerors will be evaluated in accordance with 13 CFR 125.3(g).

Pursuant to DFARS PGI 215.304(c), the following elements will be considered in evaluating an offeror's Participation Plan:

- The extent to which such firms, as defined in FAR Part 19, are specifically identified in plans.

- The extent of commitment to use such firms (enforceable commitments will be weighted more heavily than non-enforceable ones).
- The complexity and variety of the work such firms are to perform.
- The realism of the plans.
- Past performance of offerors in complying with the requirements of the Subcontracting Plan Goals for such firms and monetary targets for participation.
- The extent of participation of such firms in terms of the proposed subcontracted value; and
- The extent to which the offeror provides detailed explanations/documentation supporting the proposed participation percentages, or lack thereof. The Department of Defense (DOD) has established small business goals to help ensure small business receives a fair proportion of DOD awards.

7. Volume II – Price and Business Information

7.1 Tab A – Standard Form 1442 and Proposal Price Breakout Schedule.

7.1.1 Submission Requirements:

The offeror shall complete and submit Standard Form 1442 and Section 00 10 00, Proposal Price Breakout Schedule. Offerors are challenged to propose the best possible technical solution that meets the performance requirements outlined in the solicitation at the CCL. The CCL for the project is \$7,274,000.00. The price proposal must support the technical approach. Any proposal under or exceeding the CCL will be considered non-responsive.

7.1.2 Evaluation Criteria:

The price will be evaluated on base proposal plus all options. The price proposal will be evaluated for (1) reasonableness (determined by IAW RFO 15.404-1(b)(1) to the design build to budget limitation and (2) all program requirements for the project have been included in the price (e.g. completeness). Price will also be checked for unbalancing of line items. Offerors are cautioned to distribute costs appropriately.

7.2 Tab B – Subcontracting Plan

7.2.1 Submission Requirements

Large business offerors shall submit a Subcontracting Plan in accordance with RFO Clauses 52.219-8 and 52.219-9 Alt II. To be acceptable, plans must adequately address the required statutory elements and provide sufficient information to enable the Contracting Officer to answer affirmatively questions 1 through 13 of Appendix DD, Part 3, AFARS 5119.206-3. The offeror may use the attached sample sub-contracting plan as a starting point. Percentage goals apply to the total amount being subcontracted.

7.2.2 Evaluation Criteria

Submitted information will be evaluated for acceptability in accordance with AFARS 5119.705. To be acceptable, subcontracting plans must:

- (a) Adequately address the required statutory elements.
- (b) Provide sufficient information to enable the Contracting Officer to answer affirmatively questions 1 through 13 of Appendix DD, Part 3, AFARS 5119.206-3, a copy of which is attached.
- (c) To be acceptable, subcontracting plans must meet all of the requirements outlined in Appendix DD, Part 3, AFARS 5119.206. If discussions with offerors are necessary, those areas where the plan is deficient will be reviewed with each offeror with the goal of correcting deficiencies.

NAVFAC/USACE PAST PERFORMANCE QUESTIONNAIRE (Form PPQ-0)

CONTRACT INFORMATION (Contractor to complete Blocks 1-4)

1. Contractor Information

Firm Name:

CAGE Code:

Address:

UEI Number:

Phone Number:

Email Address:

Point of Contact:

Contact Phone Number:

2. Work Performed as: ☐ Prime Contractor ☐ Subcontractor ☐ Joint Venture ☐

Other (Explain)

Percent of project work performed:

If subcontractor, who was the prime (Name/Phone #):

3. Contract Information

Contract Number:

Delivery/Task Order Number (if applicable):

Contract Type: ☐ Firm Fixed Price ☐ Cost Reimbursement ☐ Other (Please specify):

Contract Title:

Contract Location:

Award Date (mm/dd/yy):

Contract Completion Date (mm/dd/yy):

Actual Completion Date (mm/dd/yy):

Explain Differences:

Original Contract Price (Award Amount):

Final Contract Price (*to include all modifications, if applicable*):

Explain Differences:

4. Project Description:

Complexity of Work ☐ High ☐ Med ☐ Routine

How is this project relevant to project of submission? (*Please provide details such as similar equipment, requirements, conditions, etc.*)

CLIENT INFORMATION (Client to complete Blocks 5-8)

5. Client Information

Name:

Title:

Phone Number:

Email Address:

6. Describe the client's role in the project:

7. Date Questionnaire was completed (mm/dd/yy):

8. Client's Signature:

NOTE: NAVFAC/USACE REQUESTS THAT THE CLIENT COMPLETES THIS QUESTIONNAIRE AND SUBMITS DIRECTLY BACK TO THE OFFEROR. THE OFFEROR WILL SUBMIT THE COMPLETED QUESTIONNAIRE TO USACE WITH THEIR PROPOSAL, AND MAY DUPLICATE THIS QUESTIONNAIRE FOR FUTURE SUBMISSION ON USACE SOLICITATIONS. THE GOVERNMENT RESERVES THE RIGHT TO VERIFY ANY AND ALL INFORMATION ON THIS FORM.

*ADJECTIVE RATINGS AND DEFINITIONS TO BE USED TO BEST REFLECT
YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE*

RATING	DEFINITION	NOTE
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(E) Exceptional	Performance meets contractual requirements and exceeds many to the Government/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor was highly effective.	An Exceptional rating is appropriate when the Contractor successfully performed multiple significant events that were of benefit to the Government/Owner. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
(VG) Very Good	Performance meets contractual requirements and exceeds some to the Government's/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the Contractor were effective.	A Very Good rating is appropriate when the Contractor successfully performed a significant event that was a benefit to the Government/Owner. There should have been no significant weaknesses identified.

(S) Satisfactory	Performance meets minimum contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the Contractor appear or were satisfactory.	A Satisfactory rating is appropriate when there were only minor problems, or major problems that the Contractor recovered from without impact to the contract. There should have been NO significant weaknesses identified. Per DOD policy, a fundamental principle of assigning ratings is that Contractors will not be assessed a rating lower than Satisfactory solely for not performing beyond the requirements of the contract.
(M) Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the Contractor has not yet identified corrective actions. The Contractor's proposed actions appear only marginally effective or were not fully implemented.	A Marginal rating is appropriate when a significant event occurred from which the Contractor had trouble overcoming and that impacted the Government/Owner.
(U) Unsatisfactory	Performance does not meet most contractual requirements, and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the Contractor's corrective actions appear or were ineffective.	An Unsatisfactory rating is appropriate when multiple significant events occurred from which the contractor had trouble overcoming and that impacted the Government/Owner. A singular problem, however, could be of such serious magnitude that it alone constitutes an Unsatisfactory rating.
(N) Not Applicable	No information or did not apply to your contract	Rating will be neither positive nor negative.

TO BE COMPLETED BY CLIENT

PLEASE CIRCLE THE ADJECTIVE RATING THAT BEST REFLECTS YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE.

1. QUALITY:						
a) Quality of technical data/report preparation efforts	E N	VG	S	M	U	
b) Ability to meet quality standards specified for technical performance	E N	VG	S	M	U	
c) Timeliness/effectiveness of contract problem resolution without extensive customer guidance	E N	VG	S	M	U	
d) Adequacy/effectiveness of quality control program and adherence to contract quality assurance requirements (without adverse effect on performance)	E N	VG	S	M	U	
2. SCHEDULE/TIMELINESS OF PERFORMANCE:						
a) Compliance with contract delivery/completion schedules including any significant intermediate milestones. <i>(If liquidated damages were assessed or the schedule was not met, please address below)</i>	E N	VG	S	M	U	
b) Rate the contractor's use of available resources to accomplish tasks identified in the contract	E N	VG	S	M	U	
3. CUSTOMER SATISFACTION:						
a) To what extent were the end users satisfied with the project?	E N	VG	S	M	U	
b) Contractor was reasonable and cooperative in dealing with your staff (including the ability to successfully resolve disagreements/disputes; responsiveness to administrative reports; efforts to keep lines of communication open)	E N	VG	S	M	U	
c) To what extent was the contractor cooperative, businesslike, and concerned with the interests of the customer?	E N	VG	S	M	U	
d) Overall customer satisfaction	E N	VG	S	M	U	
4. MANAGEMENT/ PERSONNEL/LABOR						
a) Effectiveness of on-site management, including management of subcontractors, suppliers, materials, and/or labor force?	E	VG	S N	M	U	
b) Ability to hire, apply, and retain a qualified workforce to this effort	E	VG	S N	M	U	
c) Government Property Control	E	VG	S N	M	U	
d) Knowledge/expertise demonstrated by contractor personnel	E	VG	S N	M	U	

e) Utilization of Small Business concerns	E	VG	S N	M	U
f) Ability to simultaneously manage multiple projects with multiple disciplines	E	VG	S N	M	U
g) Ability to assimilate and incorporate changes in requirements and/or priority, including planning, execution, and response to Government changes	E	VG	S N	M	U
h) Effectiveness of overall management (including ability to effectively lead, manage, and control the program)	E	VG	S N	M	U
5. COST/FINANCIAL MANAGEMENT					
a) Ability to meet the terms and conditions within the contractually agreed price(s)?	E	VG	S N	M	U
b) Contractor proposed innovative alternative methods/processes that reduced costs, improved maintainability, or other factors that benefited the client	E	VG	S N	M	U
c) If this is/was a Government cost type contract, please rate the Contractor's timeliness and accuracy in submitting monthly invoices with appropriate back-up documentation, monthly status reports/budget variance reports, compliance with established budgets, and avoidance of significant and/or unexplained variances (under runs or overruns)	E	VG	S N	M	U
d) Is the Contractor's accounting system adequate for management and tracking of costs? <i>If no, please explain in Remarks section.</i>	Yes		No		
e) If a Government contract, has it been partially or completely terminated for default or convenience or are there any pending terminations? <i>Indicate if show cause or cure notices were issued, or any default action in comment section below.</i>	Yes		No		
f) Have there been any indications that the contractor has had any financial problems? <i>If yes, please explain below.</i>	Yes		No		
6. SAFETY/SECURITY					
a) To what extent was the contractor able to maintain an environment of safety, adhere to its approved safety plan, and respond to safety issues? (Includes: following the users rules, regulations, and requirements regarding housekeeping, safety, correction of noted deficiencies, etc.)	E	VG	S N	M	U
b) Contractor complied with all security requirements for the project and personnel security requirements.	E	VG	S N	M	U
7. GENERAL					
a) Ability to successfully respond to emergency and/or surge situations (including notifying the COR, PM, or Contracting Officer in a timely manner regarding urgent contractual issues).	E	VG	S N	M	U

b) Compliance with contractual terms/provisions (<i>explain if specific issues</i>)	E	VG	S N	M	U
c) Would you hire or work with this firm again? (<i>If no, please explain below</i>)	Yes		No		
d) In summary, provide an overall rating for the work performed by this Contractor.	E	VG	S N	M	U

Please provide responses to the questions above (*if applicable*) and/or additional remarks. Furthermore, please provide a brief narrative addressing specific strengths, weaknesses, deficiencies, or other comments that may assist our office in evaluating performance risk (*please attach additional pages if necessary*):

AFARS -- Appendix DD Subcontracting Plan Evaluation Guide

Part 1 – Introduction

DD-100 Purpose.

The guide provides a methodology for uniform and consistent evaluation of subcontracting plans within the Army. It is designed to facilitate compliance with the mandates of 15 U.S.C. § 637(d) to increase opportunities for small and small disadvantaged businesses.

DD-101 Applicability.

In accordance with requirements of FAR 19.705-4, DFARS 219.705-4 and AFARS 5119.705-4, the contracting officer shall use this guide to review all subcontracting plans (except those for commercial items), including those submitted in response to the provisions in FAR 19.705-2(d) and (e). When the contract will require subcontracting plans, use the clauses designated by FAR 19.708(b)(1) and (2) and DFARS 219.708(b)(1)(A) in the solicitation. A copy of the completed evaluation shall be included in the contract file.

DD-102 Goals.

Contracting officers must place special emphasis on negotiating subcontracting goals that are realistic, challenging and attainable. The plan must express goals in terms of percentages of total planned subcontracting dollars and must be comparable to the dollar commitments in the small business participation plan. In accordance with FAR 19.705-4(d), the contracting officer must review enough evidence to determine that the:

1. Offeror can meet subcontracting plan goals.
2. Offeror's goals are consistent with their cost or pricing data or information other than cost or pricing data.
3. Offeror will honor the terms of subcontract agreements (i.e., timely payments of amounts owed, use of firms cited in proposal, etc.); and
4. Offeror's make or buy policy, or program does not conflict with the proposed subcontracting plan and is in the Government's best interest.
5. Plan includes the contractor's commitment to adopt and comply with its requirements and goals for small business utilization.

DD-103 Evaluation Rating.

Either the contracting officer, the small business representative, or both, shall evaluate and rate the subcontracting plan as "acceptable" or "unacceptable," in the context of the particular procurement. For instance, in smaller dollar value contracts, or contracts for uniquely manufactured items, it might be impracticable or not cost effective for offerors to take the type of

action that might be appropriate in contracts for larger dollar values or commercial components. To receive an “Acceptable” rating, the contractor must satisfy all objectives in Part 2 and meet each statutory subcontracting plan requirement outlined in Part 3. Failure to receive a subcontracting plan rating of acceptable could jeopardize the offeror’s selection for contract award. The contracting officer must document the decisions in the contract file.

DD-104 Modification of Guide.

Pursuant to AFARS 5101.403, only principal assistants responsible for contracting may approve individual deviations to this evaluation guide. This approval authority may not be further delegated.

DD-105 Use of Preaward Surveys.

For contracts administered by the Defense Contract Management Agency, obtain information needed to assess contractor compliance with subcontracting plans in current and previous contracts by requesting a Preaward Survey in accordance with FAR 9.106, DFARS 209.106 and DFARS PGI 209.106.

Part 2 – Rating System

DD-201 Acceptable Plans.

Objective: The subcontracting plan meets all of the requirements outlined in Part 3. The offeror has provided details that demonstrate an acceptable approach to assisting, promoting, and utilizing small businesses, small, disadvantaged businesses, women-owned small businesses, historically underutilized business zone small businesses, veteran-owned small businesses, service-disabled veteran-owned small businesses and, for Defense Research Programs, historically black colleges and universities and minority serving institutions. The offeror has demonstrated an ability to meet prior subcontracting plan goals and honor the terms of subcontract agreements. Offeror has outlined an approach utilizing mentor protégé firms, joint venture teams, or other partners. The subcontracting goals are realistic, challenging, and attainable. Clarifications and minor rework of the submission may be required to correct slight omissions that do not prejudice other offers.

DD-202 Unacceptable Plans.

Objective: The subcontracting plan fails to meet a requirement outlined in Part 3. The offeror has not provided an acceptable approach to assisting, promoting, and utilizing small businesses. The offeror has a history of failing to honor subcontract agreements. The offeror did not discuss the establishment of mentor protégé relationships, teaming, or joint venture agreements with other firms. Ensure the proposed subcontracting goals are attainable in light of the contractor’s past performance in meeting subcontracting goals. Proposed subcontracting goals reflect less than a good faith effort. Substantial rework of the document is required to correct omissions and establish realistic, challenging, and attainable goals. Failure to receive a rating of acceptable may jeopardize offeror’s eligibility for contract award. See FAR 19.702(a)(1).

Part 3 – Subcontracting Plan Requirements

DD-301 Requirements.

If any of the following are answered “NO”, the plan is not acceptable, and the offeror must revise it before contract award. Does the plan:

1. Contain a policy statement or evidence of internal guidance to company buyers that commit to complying with the Small Business Act (Public Law 99-661, Section 1207 and Public Law 100-180)?
2. Identify separate percentage goals for utilizing small businesses (including Alaska Native Corporations (ANCs) and Indian tribes), veteran-owned small businesses (VOSB), service-disabled veteran-owned small businesses (SDVOSB), historically underutilized business zone small businesses (HUBZone), small disadvantaged businesses (SDB), women-owned small businesses (WOSB), and, for Defense Research Programs, historically black colleges and universities and minority serving institutions where applicable? Negotiated subcontracting goals must correlate with percentages of small business utilization identified in the contractor’s small business participation plan, see FAR 15.304 and DFARS PGI 215.304(c)(i)(A), and/or minimum targets identified in the solicitation or contract modification. FAR 19.704(a)(1)
3. Project the total dollars planned to be subcontracted, and a separate statement of the total dollars planned to be subcontracted to small business (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB, and WOSB concerns? FAR 19.704(a)(2)
4. Describe the principal types of supplies and services to be subcontracted and identify the types planned for subcontracting to Small Business (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB and WOSB concerns?
5. Describe the method to be used to develop the subcontracting goals? FAR 19.704(a)(4)
6. Describe the method for identifying potential sources for solicitation purposes? FAR 19.704(a)(5)
7. State if the offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with small business, VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns? FAR 19.704(a)(6)
8. Identify the name of the employee who will administer the offeror’s subcontracting program and describe that person’s duties? FAR 19.704(a)(7)
9. Provide an approach for ensuring that small businesses, VOSB, SDVOSB, HUBZone, SDB, (including ANCs and Indian tribes) and WOSB concerns will have an equitable opportunity to compete for subcontracts?

10. Require the offeror to include the clause at FAR 52.219-8, Utilization of Small Business Concerns in all subcontracts that offer further subcontracting opportunities and require all subcontractors (except Small Business concerns) that receive subcontracts over \$750,000 (\$1,500,000 for construction) to adopt a plan that complies with the requirements of the clause at FAR 52.219-9 Alt. II, Small Business Subcontracting Plan?

11. Provide assurances that the offeror will:

- a. Cooperate in required studies or surveys.
- b. Submit periodic reports so that the Government can determine the extent of offeror's compliance with the subcontracting plan.
- c. Submit semi-annual Individual Subcontract Reports (ISRs) and/or Summary Subcontract Reports (SSR) in the Electronic Subcontracting Reporting System (eSRS) (<http://www.esrs.gov>) in accordance with FAR 52.219-9 Alt. II or provide other ancillary reports as requested by the contracting officer or Army Small Business Office;
- d. Ensure that its subcontractors with subcontracting plans agree to submit the ISRs and/or SSRs using the eSRS.
- e. Provide its prime contract number and its Unique Entity Identifier (formally DUNS number) number and the e-mail address of the Government or contractor employee responsible for acknowledging or rejecting the reports, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their reports; and
- f. Require each subcontractor with a subcontracting plan to provide the prime contract number and its own Unique Entity ID number, and the e-mail address of the Government or contractor official responsible for acknowledging or rejecting the reports, to its subcontractors with subcontracting plans? FAR 19.704(10)

12. Describe the types of records that the contractor will maintain concerning procedures adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the offeror's efforts to locate small business, VOSB, SDVOSB, HUBZone, SDB, and WOSB concerns and to award subcontracts to them? FAR 19.704(11)

13. Does plan, pursuant to FAR 19.704(11)(c), provide a separate goal for the basic contract and, if applicable, each option?

SMALL BUSINESS SUBCONTRACTING PLAN (SAMPLE)

Federal Acquisition Regulation (FAR), paragraph 19.708(b)(1)) prescribes the use of the clause at FAR 52.219-9 Alt. II entitled "Small Business Subcontracting Plan." The following is a suggested model for use when formulating such subcontracting plan. While this model plan has been designed to be consistent with FAR 52.219-9 Alt. II, other formats of a subcontracting plan may be acceptable. However, failure to include the essential information as exemplified in this model may be cause for either a delay in acceptance or the rejection of a bid or offer where the clause is applicable. Further, the use of this model is not intended to waive other requirements that may be applicable under 52.219-9 Alt. II. "SUBCONTRACT," as used in this clause, means any agreement (other than one involving an employer-employee relationship) entered into by a federal government prime contractor or subcontractor calling for supplies or services required for performance of the contract or subcontract.

I. IDENTIFICATION DATA:

Company
Name: _____

Address: _____

Date Solicitation
Prepared: _____ Number: _____

Description: _____

Contract Dollar
Value: _____

II. TYPE OF PLAN (circle one)

- A. Individual Plan (All elements developed specifically for this contract and applicable for the full term of this contract, including any option periods.)
- B. Master Plan (Goals developed for this contract; all other elements standard; must be renewed every three years)
- C. Commercial Plan Commercial products/service plan, including goals, covers the offeror's fiscal year and applies to the entire production of commercial items or delivery of services sold by either the entire company or a portion thereof (e.g., division, plant, or product line); this includes planned subcontracting for both commercial and Government business. In accordance with FAR 19.704(d), "A commercial plan (as defined in FAR 19.701) is the preferred type of subcontracting plan for contractors furnishing commercial items." (Contractor sells large quantities of off-the-shelf commodities to many Government agencies. Plans/goals negotiated by a lead agency on a company-wide basis

rather than for individual contracts. Plan effective only during the year for which it is approved. The contractor must provide a copy of the lead agency approval.)

III. GOALS:

(For information purposes only: FAR 19.704(a)(1) requires separate percentage goals for using Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns as subcontractors; and a statement of the total dollars planned to be subcontracted to Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns. NOTE: The dollar amounts planned for subcontracting must be expressed as percentages of total subcontracting dollars as shown below.)

State separate dollar and percentage goals, expressed in terms of percentages of total subcontracting dollars, for the use of Large Business, Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, Woman-Owned Small Business, and Historically Black Colleges and Universities/Minority Institutions concerns as subcontractors. The offeror shall include all subcontracts that contribute to contract performance and may include a proportionate share of products and services that are normally allocated as indirect costs in the following format. (For a contract with options, provide a separate statement for the basic contract and individual statements for each option year.)

A. **BASE BID ONLY:** The following percentage goals (expressed in terms of a percentage of total planned subcontracting dollars) and dollar amounts are applicable to the contract cited above or to the contract awarded under the solicitation cited. Total Base Bid is \$_____.

(i) Total estimated dollar value of all planned subcontracting for an individual contract plan; or the offerors total projected sales, expressed in dollars, and the total value of projected subcontracts to support the sales for a commercial plan; i.e., the sum of a and b above: \$ (100 Percent) \$_____ and _____ %

(ii) Total estimated dollar value and percent of planned subcontracting with Small Business (including Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, Woman-Owned Small Business, and Historically Black Colleges and Universities/Minority Institutions concerns): (% of "(i)") \$_____ and _____ %

(iii) Total estimated dollar value and percent of planned subcontracting with large businesses (all business concerns classified as "other than small"): (% of "(i)") \$_____ and _____ %

(iv) Total estimated dollar value and percent of planned subcontracting with Small Disadvantaged Business concerns (SDB): \$_____ and _____ % of total planned subcontracting dollars under this contract will be

awarded to subcontractors who are small concerns owned and controlled by socially and economically disadvantaged individuals and appear on the Small Business Administration's list. (% of "(i)")

(v) Total estimated dollar value and percent of planned subcontracting with Women-Owned Small Business concerns (WOSB): \$ _____ and _____ % of total planned subcontracting dollars under this contract will be awarded to subcontractors who are WOSB. (% of "(i)")

(vi) Total estimated dollar value and percent of planned subcontracting with Veteran-Owned Small Business concerns (VOSB): \$ _____ and _____ % of total planned subcontracting dollars under this contract will be awarded to subcontractors who are VOSB. (% of "(i)")

(vii) Total estimated dollar value and percent of planned subcontracting with Service-Disabled Veteran-Owned Small Business concerns (SDVOSB): \$ _____ and _____ % of total planned subcontracting dollars under this contract will be awarded to subcontractors who are SDVOSB. (% of "(i)")

(viii) Total estimated dollar value and percent of planned subcontracting with Historically Black Colleges and Universities/Minority Institutions (HBCU/MI): \$ _____ and _____ % of total planned subcontracting dollars under this contract will go to HBCU's who are an institution determined by the Secretary of Education to meet the requirements of 34 CFR 608.2, the term also includes any nonprofit research institution that was an integral part of such a college or university before November 14, 1986; or MI's who are an institution of higher education meeting the requirements of Section 1046(3) of the Higher Education Act of 1965 (20 U.S.C. 1135d-5(3)) which, includes a Hispanic-serving institution of higher education as defined in Section 316(b)(1) of the Act (20 U.S.C. 1059c(b)(1)). (% of "(i)")

(ix) Total estimated dollar value and percent of planned subcontracting with HUBZone Small Business concerns: \$ _____ and _____ % of total planned subcontracting dollars under this contract will go to subcontractors who are small business concerns located in a historically underutilized business zone which is an area located within one or more qualified census tracts, qualified non-metropolitan counties, or lands within the external boundaries of an Indian reservation and appear on the Small Business Administration's HUBZONE web site at www.sba.gov/HUBZONE. (% of "(i)")

The following principal products and/or services will be subcontracted under the Base Bid of this contract, and the distribution among Large Business, Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, Woman-Owned Small Business, and Historically Black Colleges and Universities/Minority Institutions is as follows: **(Check all that apply)**

Subcontractor Name	Product or Service/ Description	Large Businesses	Small Businesses	VOSB	SDVOSB	HSB	SDB	WOSB	HBCU/MI

(ATTACHMENT MAY BE USED IF ADDITIONAL SPACE IS REQUIRED)

B. **OPTIONS:** You must include a separate goal for each option. See the attached Continuation Sheet for Paragraph A for each option.

C. The following method was used in developing subcontract goals (i.e., Statement explaining how the product and service areas to be subcontracted were established, how the areas to be subcontracted to Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns were determined, and how Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns' capabilities were determined, to include identification of source lists utilized in making those determinations. Also, a statement as to what efforts will be taken to improve on past goals and how SB and SDB firms will be included in areas without previous SB/SDB involvement).

D. A description of the method used to identify potential **SOURCES** for solicitation purposes (e.g., whether you used existing company source lists, the System for Award Management (SAM)) of the Small Business Administration (SBA), veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, disadvantaged, and women-owned small business trade associations. A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a small, veteran-owned, service-disabled veteran-owned, HUBZone small, small disadvantaged and women-owned small business source list. Use of SAM as its source list does not relieve a firm of its responsibilities e.g., outreach, assistance, counseling, and publicizing subcontracting opportunities) in this clause.



E. Indirect and overhead costs (check one): ____ HAVE ____ HAVE NOT been included in the goals specified in Paragraph A and Paragraph B.

F. If "HAVE" was selected in Paragraph E, explain the method used in determining the proportionate share of indirect and overhead cost to be allocated as subcontracts to Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns. (NOTE: Commercial Plans Must Include Indirect Costs).

IV. PROGRAM ADMINISTRATOR:

(For information purposes only: FAR 19.704(a)(7) requires information about the company employee who will administer the subcontracting program. Please provide the name, title, address, telephone number, fax machine number, email address, position within the corporate structure, and the duties of that employee.)

Name:	
Title:	
Position:	
Address:	
Telephone	
Fax No:	
Email	

This individual's specific duties, as they relate to the firm's subcontracting program, are as follows:

General overall responsibility for this company's Small Business Program, the development, preparation and execution of individual subcontracting plans and for monitoring performance relative to contractual subcontracting requirements contained in this plan, including but not limited to:

- A. Developing and maintaining offerors/bidders lists of Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns from all possible sources. Our firm may rely on the information contained in the SBA Small Business Source System, as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business source list. The Small Business Administration's (SBA's) list of Small Disadvantaged Businesses and small HUBZone businesses can be accessed through www.sam.gov. Select "Dynamic Small Business Search" to access the SBA small business source system.
- B. Ensuring that procurement packages are structured to permit Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns to participate to the maximum extent possible.
- C. Assuring inclusion of Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns in all solicitations for products or services that they are capable of providing.
- D. Reviewing solicitations to remove statements, clauses, etc., which may tend to restrict or prohibit Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business participation, including recommendations to set aside competitions for SDB's.
- E. Ensuring periodic rotation of potential subcontractors on bidders' lists.
- F. Ensuring that the bid proposal review board documents its reasons for not selecting low bids submitted by Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns.
- G. Ensuring the establishment and maintenance of records of solicitations and subcontract award activity.
- H. Attending or arranging for attendance of company counselors at Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, etc.

- I. Conducting or arranging for conduct of motivational training for purchasing personnel pursuant to the intent of Public Laws 95-507, 99-661, and 100-180.
- J. Monitoring attainment of proposed goals.
- K. Preparing and submitting timely, required subcontract reports.
- L. Coordinating contractor's activities during the conduct of compliance reviews by Federal agencies.
- M. Coordinating the conduct of contractor's activities involving its Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business subcontracting program.
- N. Ensuring Individual Subcontract Reports (ISRs) and Summary Subcontract Reports (SSRs) are submitted using eSRS (<http://www.esrs.gov>), following the instructions in the eSRS.
- O. Notifying the Contracting Officer or his representative in writing of any substitutions of firms that are not Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business for the firms listed in the subcontracting plan.
- P. Additions to (or deletions from) the duties specified above are as follows:

V. EQUITABLE OPPORTUNITY:

(For information purposes only: FAR 19-704(8) requires a description of the efforts the contractor will make to ensure that Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns will have an equitable opportunity to compete for subcontracts.)

The following efforts will be taken to assure that Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns will have an equitable opportunity to compete for subcontracts, including items not traditionally awarded to SB or SDB firms:

A. Outreach efforts will be made by:

- (i) Contacts with minority and small business trade associations such as veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce.
- (ii) Contacts with business development organizations.
- (iii) Attendance at small and minority business procurement conferences and trade fairs.
- (iv) Sources will be requested from Small Business Administration's small business source system.
- (v) Reviews to determine the competence, ability, experience and capacity available from SB and SDB firms and providing technical assistance to same.
- (vi) Evaluations of our SB, SDB, WOSB, VOSB, SDVOSB and HUBZone award performance and program effectiveness against goals established company wide.

B. The following internal efforts will be made to guide and encourage buyers:

- (i) Workshops, seminars and training programs will be conducted.
- (ii) Activities will be monitored to evaluate compliance with this subcontracting plan, evaluating SB, SDB, WOSB, VOSB, SDVOSB and HUBZone award performance and program effectiveness.
- (iii) Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concern source lists, guides and other data identifying Small, Small Disadvantaged and Women-Owned Small Business concerns will be maintained and utilized by buyers in soliciting subcontracts.
- (iv) Additions to (or deletion from) the above listed efforts are as follows:

VI. FLOW DOWN CLAUSE:

(For information purposes only: FAR 19-704(a)(9) requires that your company include FAR 52.219-8, "Utilization of Small Business Concerns," in all subcontracts that offer further subcontracting opportunities. Your company must require all subcontractors, except small business concerns, that receive subcontracts in excess of \$900,000 (\$2 million for

construction) to adopt a plan that complies with the requirements of FAR 52.219-9 Alt. II, "Small Business Subcontracting Plan.")

The offeror (contractor) agrees that the clause entitled "Utilization of Small Business Concerns" at FAR 52.219-8 will be included in all subcontracts that offer further subcontracting opportunities, and all subcontractors (except small business concerns) who receive subcontracts in excess of \$900,000 (\$2 million for construction) will be required to adopt a subcontracting plan that complies with 52.219-9 Alt. II. Such plans will be reviewed by comparing them with the provisions of Public Law 95-507 and assuring that all minimum requirements of an acceptable subcontracting plan have been satisfied. The acceptability of percentage goals shall be determined on a case-by-case basis depending on the supplies/services involved, the availability of potential Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business subcontractors, and prior experience. Once approved and implemented, plans will be monitored through the submission of periodic reports, and/or, as time and availability of funds permit, periodic visits to subcontractors' facilities to review applicable records and subcontracting program progress.

VII. REPORTING AND COOPERATION:

(For information purposes only: FAR 19-704(a)(10) requires your company (i) cooperate in any studies or surveys as may be required, (ii) submit periodic reports which show compliance with the subcontracting plan; (iii) submit the Individual Subcontract Report (ISR), and the Summary Subcontract Report (SSR) using the Electronic Subcontracting Reporting System (eSRS);, (iv) ensure that subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using eSRS, (v) provide the prime contract number, Unique Entity ID number, and the e-mail address of the offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs, and (vi) require that each subcontractor with a subcontracting plan provide the prime contract number, its own Unique Entity ID number, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.)

The offeror/contractor agrees to submit such periodic reports and cooperate in any studies or surveys as may be required by the contracting agency or the Small Business Administration in order to determine the extent of compliance by the offeror/contractor with the subcontracting plan and with the clause entitled

"Utilization of Small Business Concerns," contained in the contract. The above reports will include submission of its Individual Subcontracting Report (ISR) and Summary Subcontract Report (SSR)

The offeror/contractor further agrees to ensure that its subcontractors agree to submission of ISRs and SSRs.

ISRs and SSRs shall be submitted via the Electronic Subcontracting Reporting System (eSRS) website www.esrs.gov

Reporting Period	Report Due	Due Date
Oct 1 - Mar 31	ISR/SF294	4/30
Apr 1 - Sept 30	ISR/SF294	10/30
Oct 1 – Mar 31	SSR/SF295	4/30 (for contracts with the DOD)
Apr 1 – Sept 30	SSR/SF295	10/30 (for contracts with DOD)
Oct 1 - Sept 30	SSR/SF295	10/30 (for civilian agencies)
Contract Completion	SSR/SF295	30 days after close of contractor's fiscal year (Commercial Plan)

The offeror/contractor agrees to ensure that subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using eSRS and to provide the prime contract number, Unique Entity ID number, and the e-mail address of the offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs.

The offeror/contractor agrees to require each subcontractor with a subcontracting plan provide the prime contract number, its own Unique Entity ID number, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.

VIII. RECORDKEEPING:

(For information purpose only: FAR 19-704(a)(11) requires a list of the types of records your company will maintain to demonstrate the procedures adopted to comply with the requirements and goals in the subcontracting plan.)

The offeror/contractor agrees that he will maintain at least the following types of records to document compliance with this subcontracting plan:

- A. Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concern source lists, guides and other data identifying SB/SDB concerns.
- B. Organizations contacted for Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business sources.

- C. On a contract-by-contract basis, records on all subcontract solicitations over \$250,000, indicating on each solicitation (i) whether small business concerns were solicited, and if not, why not; (ii) whether Veteran-Owned Small Business concerns were solicited, and if not, why not; (iii) whether Service-Disabled Veteran-Owned Small Business concerns were solicited, and if not, why not; (iv) whether HUBZone Small Business concerns were solicited, and if not, why not; (v) whether Small Disadvantaged business concerns were solicited, and if not, why not; (vi) whether Women-Owned Small Business concerns were solicited, and if not, why not; and (vii) reasons for the failure of solicited Small Business, Veteran-Owned Small Business, Service-Disabled Veteran-Owned Small Business, HUBZone Small Business, Small Disadvantaged Business, and Women-Owned Small Business concerns to receive the subcontract award.
- D. Records to support other outreach efforts: Contacts with veteran service organizations, Minority and Small Business Trade Associations, etc., and attendance at small and minority business procurement conferences and trade fairs.
- E. Records to support internal activities to guide and encourage buyers: Workshops, seminars, training programs, etc., monitoring activities to evaluate compliance.
- F. On a contract-by-contract basis, records to support subcontract award data to include name and address and business size of each subcontractor. Contractors having commercial plans need not comply with this requirement.
- G. Records to be maintained in addition to the above are as follows:

IX. ASSURANCES

(For information purposes only: FAR 19.704(a) (12-15) requires assurances from your firm)

- A. The offeror/contractor will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the Small Business concerns that the offeror used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. An offeror used a Small Business concern in preparing the bid or proposal if--
- (i) The offeror identifies the Small Business concern as a subcontractor in the bid or proposal or associated Small Business Subcontracting Plan, to furnish certain supplies or perform a portion of the contract; or

- (ii) The offeror used the Small Business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the Small Business Concern will be awarded a subcontract for the related work if the offeror is awarded the contract.
- B. The offeror/contractor will provide the Contracting Officer with a written explanation if the contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in (a)(12) of this section. This written explanation will be submitted to the contracting officer within 30 days of contract completion; and
- C. The offeror/contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor.
- D. The offeror/contractor will pay its Small Business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the contracting officer if the offeror pays a reduced or an untimely payment to a small business subcontractor (see [52.242-5](#)).

X. SIGNATURES REQUIRED:

This Subcontracting Plan was SUBMITTED by:

Signature: _____ Date: _____

Typed Name and Title:

Phone Number: _____

Contracting Officer Approval: _____ **Date:** ____

**CONTINUATION OF PARAGRAPH A
(SUBMIT ADDITIONAL OPTION PAGES FOR EACH OPTION)**

NAME OF OPTION: _____

	Dollars	Percentage
1. Total option contract price	_____	
2. Total to be subcontracted (to all types of businesses)	_____	_____
a. To Large Business	_____	_____
b. To Small Business	_____	_____
i. To Veteran-Owned Small Business	_____	_____
ii. To Service-Disabled Veteran-Owned Small Business	_____	_____
iii. To HUBZone Small Business	_____	_____
iv. To Small Disadvantaged Business	_____	_____
v. To Women-Owned Small Business	_____	_____

The following principal products and/or services will be subcontracted under Option 1 of this contract, and the distribution among LB, SB, SDB, WOSB, VOSB, SDVOSB, HBCU/MI, and HUBZone SB is as follows: **(Check all that apply)**

Subcontract or Name	Product or Service/ Description	Large Businesses	Small Business	VOSB	SDVOSB	HSB	SDB	WOS B	HBCU /MI

REPS AND CERTS

REPRESENTATIONS AND CERTIFICATIONS

COMPANY NAME AND ADDRESS:

PHONE NUMBER: _____ FAX NUMBER: _____

EMAIL ADDRESS: _____

BUSINESS SIZE (select one):

Large Business ____ Small Business ____ HUBZone ____ 8A ____

Woman-Owned ____ Veteran-Owned ____ Service-Disabled Veteran-Owned ____

CURRENTLY REGISTERED WITH SYSTEM FOR AWARD MANAGEMENT (SAM):

YES ____ NO ____ (Note: See FAR 52.204-7)

UNIQUE ENTITY IDENTIFIER: _____

(Note: See FAR 52.204-7. Unique Entity Identifier is a 12-character alphanumeric code.)

CAGE CODE: _____

(Note: See FAR 52.204-7)

Section 00 45 00 - Representations and Certifications

Reps and Certs

*** END OF NARRATIVE ***

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.229-12	Tax on Certain Foreign Procurements.	2021-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		

252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	2022-08
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-2	Certificate of Independent Price Determination.	1985-04		

Certificate of Independent Price Determination (Apr 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision ____ [insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.209-2	Prohibition on Contracting With Inverted Domestic Corporations- Representation. (Deviation)	2026-02
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Prohibition on Contracting with Inverted Domestic Corporations-Representation (Feb 2026)
(Deviation)

(a) Definitions. As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned-

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) Representation. The Offeror represents that-

- (1) It [] is, [] is not an inverted domestic corporation; and
- (2) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-5	Certification Regarding Responsibility Matters.	2026-02
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(Deviation)

Certification Regarding Responsibility Matters (Feb 2026) (Deviation)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i) (B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has

failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has [] has not [], within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e. g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

(Deviation)

Information Regarding Responsibility Matters (Feb 2026) (Deviation)

(a) Definitions. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

- (1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following

dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation)	2026-02
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Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction
under any Federal Law (Feb 2026) (Deviation)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.209-13	Violation of Arms Control Treaties or Agreements- Certification. (Deviation)	2026-02
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Violation of Arms Control Treaties or Agreements-Certification (Feb 2026) (Deviation)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal

Acquisition Regulation 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have

engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.219-1	Small Business Program Representations. (Deviation)	2026-02
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Small Business Program Representations (Feb 2026) (Deviation)

(a) Definitions. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management

(SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 236220[insert NAICS code].

(2) The small business size standard is 45,000,000.00[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that-

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [_____] The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c) (1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____] The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____] The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it [] is, [] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The offeror shall enter the name and unique entity identifier of each party to the joint venture:____.]

(6) HUBZone joint venture eligible under the HUBZone Program. [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
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252.204-7017 Prohibition on the Acquisition of 2021-05
Covered Defense
Telecommunications Equipment
or Services-Representation.

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section 00 70 00 - Conditions of the Contract**FAR Clauses Incorporated by Reference**

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.222-3	Convict Labor. (Deviation)	2026-02		
52.222-7	Withholding of Funds. (Deviation)	2026-02		
52.225-11	Buy American-Construction Materials under Trade Agreements. (Deviation) (Alternate I)	2026-02	Alternate I	2026-02
52.236-16	Quantity Surveys. (Alternate I)	2026-02	Alternate I	1984-04
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.215-7010	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data.	2024-05		
252.226-7003	Drug-Free Work Force.	2024-08		

252.227-7989	Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services. ALTERNATE I (DEVIATION 2026-O0036)	2026-02	Alternate I Deviation 2026- O0036	2026-02 2026-02
252.227-7995	Deferred Ordering of Technical Data or Computer Software. (DEVIATION 2026-O0036)	2026-02	Deviation 2026- O0036	2026-02

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.228-16	Performance and Payment Bonds-Other Than Construction. (Alternate I)	2006-11	Alternate I	2000-07

Alternate I (July2000). As prescribed in 28.103-4 , substitute the following paragraphs (b) and (d) for paragraphs (b) and (d) of the basic clause:

(b) The Contractor shall furnish a performance bond (Standard Form 1418) for the protection of the Government in an amount equal to 20% percent of the original contract price.

(d) The Government may require additional performance bond protection if the contract price is increased. The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7998	Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043)	2026-02	Alternate A Deviation 2026-O0043	2026-02 2026-02

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-- Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

[](i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

[](ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

[](iii) 252.225-7020, Trade Agreements Certificate.

[]Use with Alternate I.

[](iv) 252.225-7031, Secondary Arab Boycott of Israel.

[](v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

[]Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.		Title	Date	Change
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.215-7994	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. Alternate I (DEVIATION 2026-O0048)	2026-03	Alternate I Deviation 2026-O0048	2026-03
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Alternate I. (DEVIATION 2026-O0048) As prescribed in 215.110-70(e)(1) and(e)(1)(ii), use the following provision, which includes a different paragraph (c)(1).

REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA--ALTERNATE I (DEVIATION 2026-O0048) (MAR 2026)

(a) Definitions. As used in this provision--

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

"Sufficient non-Government sales" means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by Federal Acquisition Regulation (FAR) 15.404-1(b)(2)(ii).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) Exceptions from certified cost or pricing data.

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this

provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) Exception for price set by law or regulation - Identification of the law or regulation establishing the price offered. If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) Commercial product or commercial service exception. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include--

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial--

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including--

(i) For products under paragraph (3)(i) of the "commercial product" definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the "commercial product" definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall--

- (i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and
- (ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog--

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) Requirements for certified cost or pricing data. If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall submit certified cost or pricing data and supporting attachments in the following format: [Insert description of the data and format that are required, and include access to records necessary to permit an adequate evaluation of the proposed price in accordance with FAR 15.408-2, Table 15-1, Note 2. The Contracting Officer shall insert the description at the time of issuing the solicitation or specify that the format regularly maintained by the offeror or prospective subcontractor in its business operations will be acceptable. The Contracting Officer may amend the description as the result of negotiations.]

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.403-4.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-2(c)(1)(ii).

(d) Requirements for data other than certified cost or pricing data.

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include all data necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402-70(a)(1), 215.404-170, and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

"By submission of this data, the Offeror [Offeror insert company name] certifies that the customer was [Offeror insert one or more of the following as applicable: a government customer (e.g., Federal, state, local, or foreign government); a commercial customer purchasing the same or similar product for governmental purposes; or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose]."

(4) The Offeror shall provide information described as follows: [Insert description of the data

and the format that are required, including access to records necessary to permit an adequate evaluation of the proposed price in accordance with 15.403-1 or DFARS 234.7002(e)].

(5) Within 10 days of a written request from the Contracting Officer for additional information to support proposal analysis, the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(6) Subcontract price evaluation.

(i) Offerors shall obtain from subcontractors the information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost information may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary--

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) Subcontracts. The Offeror shall insert the substance of this provision, including this paragraph (e), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of--

(1) Paragraph (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in 215.403-3(a); and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section 00 72 00 - General Conditions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-5	Covenant Against Contingent Fees.	2014-05		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-7	Anti-Kickback Procedures.	2020-06		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	2014-05		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	2014-05		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	2020-06		
52.203-13	Contractor Code of Business Ethics and Conduct.	2021-11		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.204-10	Reporting Executive	2026-02		

	Compensation and First-Tier Subcontract Awards. (Deviation)	
52.204-13	System for Award Management- Maintenance. (Deviation)	2026-02
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	2026-02
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	2026-02
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	2026-02
52.210-1	Market Research. (Deviation)	2026-02
52.211-13	Time Extensions.	2000-09
52.215-2	Audit and Records-Negotiation. (Deviation)	2026-02
52.215-8	Order of Precedence-Uniform Contract Format. (Deviation)	2026-02
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	2011-08
52.215-11	Price Reduction for Defective	2026-02

	Certified Cost or Pricing Data- Modifications. (Deviation)	
52.215-12	Subcontractor Certified Cost or Pricing Data. (Deviation)	2026-02
52.215-13	Subcontractor Certified Cost or Pricing Data-Modifications. (Deviation)	2026-02
52.215-17	Waiver of Facilities Capital Cost of Money.	1997-10
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions. (Deviation)	2026-02
52.215-19	Notification of Ownership Changes. (Deviation)	2026-02
52.219-8	Utilization of Small Business Concerns. (Deviation)	2026-02
52.219-9	Small Business Subcontracting Plan. (Deviation)	2026-02
52.219-16	Liquidated Damages- Subcontracting Plan. (Deviation)	2026-02
52.222-4	Contract Work Hours and Safety Standards-Overtime Compensation. (Deviation)	2026-02
52.222-6	Construction Wage Rate Requirements. (Deviation)	2026-02
52.222-8	Payrolls and Basic Records. (Deviation)	2026-02

52.222-9	Apprentices and Trainees. (Deviation)	2026-02
52.222-10	Compliance with Copeland Act Requirements. (Deviation)	2026-02
52.222-11	Subcontracts (Labor Standards). (Deviation)	2026-02
52.222-12	Contract Termination-Debarment.	2014-05
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	2014-05
52.222-14	Disputes Concerning Labor Standards. (Deviation)	2026-02
52.222-15	Certification of Eligibility.	2014-05
52.222-30	Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Method).	2018-08
52.222-35	Equal Opportunity for Veterans. (Deviation)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation)	2026-02

52.222-54	Employment Eligibility Verification. (Deviation)	2026-02
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation)	2026-02
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts. (Deviation)	2026-02
52.223-5	Pollution Prevention and Right-to-Know Information.	2024-05
52.223-23	Sustainable Products. (Deviation)	2026-02
52.226-7	Drug-Free Workplace.	2024-05
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.227-1	Authorization and Consent.	2020-06
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	2020-06
52.227-4	Patent Indemnity-Construction Contracts.	2007-12
52.228-2	Additional Bond Security.	1997-10
52.228-5	Insurance-Work on a Government Installation.	1997-01
52.228-14	Irrevocable Letter of Credit.	2014-11

52.229-3	Federal, State, and Local Taxes.	2013-02
52.232-8	Discounts for Prompt Payment.	2002-02
52.232-17	Interest.	2014-05
52.232-27	Prompt Payment for Construction Contracts.	2017-01
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-1	Disputes. (Deviation)	2026-02
52.233-3	Protest after Award. (Deviation)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	2026-02
52.236-2	Differing Site Conditions. (Deviation)	2026-02
52.236-3	Site Investigation and Conditions Affecting the Work. (Deviation)	2026-02
52.236-5	Material and Workmanship. (Deviation)	2026-02
52.236-6	Superintendence by the Contractor. (Deviation)	2026-02
52.236-7	Permits and Responsibilities.	2026-02

(Deviation)

52.236-8	Other Contracts. (Deviation)	2026-02
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements. (Deviation)	2026-02
52.236-10	Operations and Storage Areas. (Deviation)	2026-02
52.236-11	Use and Possession Prior to Completion. (Deviation)	2026-02
52.236-12	Cleaning Up. (Deviation)	2026-02
52.236-13	Accident Prevention. (Deviation)	2026-02
52.236-14	Availability and Use of Utility Services. (Deviation)	2026-02
52.236-15	Schedules for Construction Contracts. (Deviation)	2026-02
52.236-17	Layout of Work. (Deviation)	2026-02
52.236-21	Specifications and Drawings for Construction. (Deviation)	2026-02
52.236-25	Requirements for Registration of Designers.	2003-06
52.242-5	Payments to Small Business Subcontractors.	2017-01
52.242-13	Bankruptcy.	1995-07
52.242-14	Suspension of Work.	1984-04
52.243-4	Changes. (Deviation)	2026-02

52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	2026-02
52.246-12	Inspection of Construction.	1996-08
52.249-10	Default (Fixed-Price Construction).	1984-04
52.253-1	Computer Generated Forms. (Deviation)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	2023-01		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.203-7003	Agency Office of the Inspector General.	2019-08		
252.203-7004	Display of Hotline Posters.	2023-01		

252.204-7000	Disclosure of Information.	2016-10
252.204-7003	Control of Government Personnel Work Product.	1992-04
252.204-7004	Antiterrorism Awareness Training for Contractors.	2023-01
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	2023-11
252.205-7000	Provision of Information to Cooperative Agreement Holders.	2024-10
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	2019-05
252.215-7002	Cost Estimating System Requirements.	2025-01
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	2019-12
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	2023-01
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	2014-09
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01

252.225-7012	Preference for Certain Domestic Commodities.	2022-04
252.225-7048	Export-Controlled Items.	2013-06
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.236-7000	Modification Proposals--Price Breakdown.	1991-12
252.236-7002	Obstruction of Navigable Waterways.	1991-12
252.236-7005	Airfield Safety Precautions.	1991-12
252.236-7008	Contract Prices--Bidding Schedules.	1991-12
252.236-7013	Requirement for Competition Opportunity for American Steel Producers, Fabricators, and Manufacturers.	2023-01

252.243-7001	Pricing of Contract Modifications.	1991-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	2023-11
252.244-7001	Contractor Purchasing System Administration.	2025-01
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations.	2010-10
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.211-12	Liquidated Damages-Construction.	2000-09		

Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of \$1,480.00 for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to

excess costs of repurchase under the Termination clause.

(End of clause)

52.216-18

Ordering.

2020-08

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from ____ through ____ [insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation)	2026-02
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Notice of Price Evaluation preference for HUBZone Small Business Concerns (Feb 2026)
(Deviation)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) Waiver of evaluation preference. A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

[] Offeror chooses to waive the evaluation preference.

(c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.223-9	Estimate of Percentage of	2008-05
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Recovered Material Content for
EPA-Designated Items.

Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)

(a) Definitions. As used in this clause-

Postconsumer material means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of "recovered material."

"Recovered material" means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall-

(1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post-consumer material content; and

(2) Submit this estimate to _____[Contracting Officer complete in accordance with agency procedures].

(End of clause)

52.225-9	Buy American-Construction Materials. (Deviation)	2026-02
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Buy American-Construction Materials (Feb 2026) (Deviation)

(a) Definitions. As used in this clause-

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR

25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Domestic construction material means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

_____ [Contracting Officer to list applicable excepted materials or indicate "none"]

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) For domestic construction material that is not a critical item or does not contain critical components.

(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) For domestic construction material that is a critical item or contains critical components.

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b) (3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why

the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute or Balance of Payments Program.

(d) Data. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison				
Construction material description		Unit of measure		
Quantity	Price (dollars)*			
Item 1:				
	Foreign construction material.	_____	_____	_____
	Domestic construction material.	_____	_____	_____
Item 2:				
	Foreign construction material.	_____	_____	_____
	Domestic construction material.	_____	_____	_____

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)).[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.][Include other applicable supporting information.]

(End of clause)

Materials under Trade
Agreements. (Deviation)

Buy American-Construction Materials under Trade Agreements (Feb 2026) (Deviation)

(a) Definitions. As used in this clause-

Caribbean Basin country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item-

- (1) Means any item of supply (including construction material) that is-
 - (i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio

evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Designated country means any of the following countries:

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or

forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a least developed country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the

cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a WTO GPA country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C.1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

_____ [Contracting Officer is to list applicable excepted materials or indicate "none"]

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) For domestic construction material that is not a critical item or does not contain critical components.

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) [Reserved]

(3) [Reserved]

(B) For domestic construction material that is a critical item or contains critical components.

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) [Reserved]

(3) [Reserved]

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b) (4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) Data. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable

supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison				
Construction material description		Unit of measure		
Quantity	Price (dollars)*			
Item 1:				
	Foreign construction material.	_____	_____	_____
	Domestic construction material.	_____	_____	_____
Item 2:				
	Foreign construction material.	_____	_____	_____
	Domestic construction material.	_____	_____	_____

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[Include other applicable supporting information.]

(End of clause)

52.228-15 Performance and Payment 2020-06
Bonds-Construction.

Performance and Payment Bonds-Construction (Jun 2020)

(a) Definitions. As used in this clause-

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) Amount of required bonds. Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation 28.102-1(a) on the date of award of this

contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) Performance bonds (Standard Form 25). The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) Payment Bonds (Standard Form 25A). The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) Additional bond protection.

(i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) Furnishing executed bonds. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) Surety or other security for bonds. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the Federal Register or may be obtained from the:

U.S. Department of the Treasury,

Financial Management,

Service Surety Bond Branch,

3700 East West Highway,

Room 6 F01,

Hyattsville, MD 20782.

Or via the internet at <http://www.fms.treas.gov/c570/>.

(e) Notice of subcontractor waiver of protection (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of clause)

52.232-5	Payments under Fixed-Price Construction Contracts.	2014-05
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Payments under Fixed-Price Construction Contracts (May 2014)

(a) Payment of price. The Government shall pay the Contractor the contract price as provided in this contract.

(b) Progress payments. The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) Contractor certification. Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

____ (Name)

____ (Title)

____ (Date)

(d) Refund of unearned amounts. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8 thday after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) Retainage. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) Title, liability, and reservation of rights. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the

contract.

(g) Reimbursement for bond premiums. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) Final payment. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 (31 U.S.C.3727 and 41 U.S.C.6305).

(i) Limitation because of undefinitized work. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) Interest computation on unearned amounts. In accordance with 31 U.S.C.3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

52.232-32 Performance-Based Payments. 2012-04

Performance-Based Payments (Apr 2012)

(a) Amount of payments and limitations on payments. Subject to such other limitations and conditions as are specified in this contract and this clause, the amount of payments and limitations on payments shall be specified in the contract's description of the basis for payment.

(b) Contractor request for performance-based payment. The Contractor may submit requests for payment of performance-based payments not more frequently than monthly, in a form and manner acceptable to the Contracting Officer. Unless otherwise authorized by the Contracting Officer, all performance-based payments in any period for which payment is being requested shall be included in a single request, appropriately itemized and totaled. The Contractor's request shall contain the information and certification detailed in paragraphs (l) and (m) of this clause.

(c) Approval and payment of requests.

(1) The Contractor shall not be entitled to payment of a request for performance-based payment prior to successful accomplishment of the event or performance criterion for which payment is requested. The Contracting Officer shall determine whether the event or performance criterion for which payment is requested has been successfully accomplished in accordance with the terms of the contract. The Contracting Officer may, at any time, require the Contractor to substantiate the successful performance of any event or performance criterion which has been or is represented as being payable.

(2) A payment under this performance-based payment clause is a contract financing payment under the Prompt Payment clause of this contract and not subject to the interest penalty provisions of the Prompt Payment Act. The designated payment office will pay approved requests on the ____ [Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after receipt of the request for performance-based payment by the

designated payment office. However, the designated payment office is not required to provide payment if the Contracting Officer requires substantiation as provided in paragraph (c)(1) of this clause, or inquires into the status of an event or performance criterion, or into any of the conditions listed in paragraph (e) of this clause, or into the Contractor certification. The payment period will not begin until the Contracting Officer approves the request.

(3) The approval by the Contracting Officer of a request for performance-based payment does not constitute an acceptance by the Government and does not excuse the Contractor from performance of obligations under this contract.

(d) Liquidation of performance-based payments.

(1) Performance-based finance amounts paid prior to payment for delivery of an item shall be liquidated by deducting a percentage or a designated dollar amount from the delivery payment. If the performance-based finance payments are on a delivery item basis, the liquidation amount for each such line item shall be the percent of that delivery item price that was previously paid under performance-based finance payments or the designated dollar amount. If the performance-based finance payments are on a whole contract basis, liquidation shall be by either predesignated liquidation amounts or a liquidation percentage.

(2) If at any time the amount of payments under this contract exceeds any limitation in this contract, the Contractor shall repay to the Government the excess. Unless otherwise determined by the Contracting Officer, such excess shall be credited as a reduction in the unliquidated performance-based payment balance(s), after adjustment of invoice payments and balances for any retroactive price adjustments.

(e) Reduction or suspension of performance-based payments. The Contracting Officer may reduce or suspend performance-based payments, liquidate performance-based payments by deduction from any payment under the contract, or take a combination of these actions after finding upon substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (h) and (i) of this clause).

(2) Performance of this contract is endangered by the Contractor's-

(i) Failure to make progress; or

(ii) Unsatisfactory financial condition.

(3) The Contractor is delinquent in payment of any subcontractor or supplier under this contract in the ordinary course of business.

(f) Title.

(1) Title to the property described in this paragraph (f) shall vest in the Government. Vestiture shall be immediately upon the date of the first performance-based payment under this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) "Property," as used in this clause, includes all of the following described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices:

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (f)(2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract (e.g., the termination clauses) shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract, without requesting the Contracting Officer's approval, provided that any significant reduction in the value of the property to which the Government has title under this clause is reported in writing to the Contracting Officer.

(5) In order to acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor shall obtain the Contracting Officer's advance approval of the action and the terms. If approved, the basis for payment (the events or performance criteria) to which the property is related shall be deemed to be not in compliance with the terms of the contract and not payable (if the property is part of or needed for performance), and the Contractor shall refund the related performance-based payments in accordance with paragraph (d) of this clause.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all performance-based payments, title shall vest in the Contractor for all property (or the proceeds thereof) not-

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(g) Risk of loss. Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. If any property is lost (see 45.101), the basis of payment (the events or performance criteria) to which the property is related shall be deemed to be not in compliance with the terms of the contract and not payable (if the property is part of or needed for performance), and the Contractor shall refund the related performance-based payments in accordance with paragraph (d) of this clause.

(h) Records and controls. The Contractor shall maintain records and controls adequate for administration of this clause. The Contractor shall have no entitlement to performance-based payments during any time the Contractor's records or controls are determined by the Contracting Officer to be inadequate for administration of this clause.

(i) Reports and Government access. The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information requested by the Contracting Officer for the administration of this clause and to determine that an event or other criterion prompting a financing payment has been successfully accomplished. The Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's records and to examine and verify the Contractor's performance of this contract for administration of this clause.

(j) Special terms regarding default. If this contract is terminated under the Default clause, (1) the Contractor shall, on demand, repay to the Government the amount of unliquidated performance-based payments, and (2) title shall vest in the Contractor, on full liquidation of all performance-based payments, for all property for which the Government elects not to require delivery under the Default clause of this contract. The Government shall be liable for no payment except as provided by the Default clause.

(k) Reservation of rights.

(1) No payment or vesting of title under this clause shall-

- (i) Excuse the Contractor from performance of obligations under this contract; or
- (ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause-

(i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and

(ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(l) Content of Contractor's request for performance-based payment. The Contractor's request for performance-based payment shall contain the following:

- (1) The name and address of the Contractor;
- (2) The date of the request for performance-based payment;
- (3) The contract number and/or other identifier of the contract or order under which the request is made;
- (4) Such information and documentation as is required by the contract's description of the basis for payment; and

(5) A certification by a Contractor official authorized to bind the Contractor, as specified in paragraph (m) of this clause.

(m) Content of Contractor's certification. As required in paragraph (l)(5) of this clause, the Contractor shall make the following certification in each request for performance-based payment:

I certify to the best of my knowledge and belief that-

(1) This request for performance-based payment is true and correct; this request (and attachments) has been prepared from the books and records of the Contractor, in accordance with the contract and the instructions of the Contracting Officer;

(2) (Except as reported in writing on ____), all payments to subcontractors and suppliers under this contract have been paid, or will be paid, currently, when due in the ordinary course of business;

(3) There are no encumbrances (except as reported in writing on ____) against the property acquired or produced for, and allocated or properly chargeable to, the contract which would affect or impair the Government's title;

(4) There has been no materially adverse change in the financial condition of the Contractor since the submission by the Contractor to the Government of the most recent written information dated ____; and

(5) After the making of this requested performance-based payment, the amount of all payments for each deliverable item for which performance-based payments have been requested will not exceed any limitation in the contract, and the amount of all payments under the contract will not exceed any limitation in the contract.

(End of clause)

Value Engineering-Construction (Oct 2025)

(a) General. The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any instant contract savings realized from accepted VECP's, in accordance with paragraph (f) of this clause.

(b) Definitions. "Collateral costs," as used in this clause, means agency costs of operation, maintenance, logistic support, or Government-furnished property.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistic support. The term does not include the normal administrative costs of processing the VECP.

Instant contract savings, as used in this clause, means the estimated reduction in Contractor cost of performance resulting from acceptance of the VECP, minus allowable Contractor's development and implementation costs, including subcontractors' development and implementation costs (see paragraph (h) of this clause).

Value engineering change proposal (VECP) means a proposal that-

- (1) Requires a change to this, the instant contract, to implement; and
- (2) Results in reducing the contract price or estimated cost without impairing essential functions or characteristics; provided, that it does not involve a change-
 - (i) In deliverable end item quantities only; or

(ii) To the contract type only.

(c) VECP preparation. As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (7) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and that proposed, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, and the effect of the change on the end item's performance.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under paragraph (h) of this clause.

(4) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(5) A prediction of any effects the proposed change would have on collateral costs to the agency.

(6) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(7) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) Submission. The Contractor shall submit VECP's to the Resident Engineer at the worksite, with a copy to the Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause. The Contracting Officer may accept the VECP, even though an agreement on price reduction has not been reached, by issuing the Contractor a notice to proceed with the change. Until a notice to proceed is issued or a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) Sharing-

(1) Rates. The Government's share of savings is determined by subtracting Government costs from instant contract savings and multiplying the result by-

(i) 45 percent for fixed-price contracts; or

(ii) 75 percent for cost-reimbursement contracts.

(2) Payment. Payment of any share due the Contractor for use of a VECP on this contract shall be authorized by a modification to this contract to-

(i) Accept the VECP;

- (ii) Reduce the contract price or estimated cost by the amount of instant contract savings; and
- (iii) Provide the Contractor's share of savings by adding the amount calculated to the contract price or fee.

(g) Collateral savings. If a VECP is accepted, the Contracting Officer will increase the instant contract amount by 20 percent of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer is the sole determiner of the amount of collateral savings.

(h) Subcontracts. The Contractor shall include an appropriate value engineering clause in any subcontract of \$90,000 or more and may include one in subcontracts of lesser value. In computing any adjustment in this contract's price under paragraph (f) of this clause, the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs clearly resulting from a VECP accepted by the Government under this contract, but shall exclude any value engineering incentive payments to a subcontractor. The Contractor may choose any arrangement for subcontractor value engineering incentive payments; provided, that these payments shall not reduce the Government's share of the savings resulting from the VECP.

(i) Data. The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering-Construction clause of contract ____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by 1998-02
 Reference.

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

The full text of FAR clauses and provisions (numbered as 52.XXX-XX) can be found at this site:

<https://www.acquisition.gov/browse/index/far>

The full text of DFARS clauses and provisions (numbered as 252.XXX-XX) can be found at this site:

<https://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of clause)

52.252-4 Alterations in Contract. 1984-04

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

(End of clause)

52.252-6 Authorized Deviations in Clauses. 2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7021	Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.	2025-11		

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using

safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the

public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) Framework. The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) Duplication. The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) Requirements. The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: ____ Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain

on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) Reporting. The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) Subcontracts. The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e) (1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.236-7001	Contract Drawings and Specifications.	2000-08
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CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

(1) Check all drawings furnished immediately upon receipt;

(2) Compare all drawings and verify the figures before laying out the work;

(3) Promptly notify the Contracting Officer of any discrepancies;

(4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and

(5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

(1) Large-scale drawings shall govern small-scale drawings; and

(2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or

misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Title	File	Drawing No.
_____	_____	G0001
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
(End of clause)		

"General Decision Number: KY20260066 01/02/2026

Superseded General Decision Number: KY20250066

State: Kentucky

Construction Type: Heavy

County: Christian County in Kentucky.

HEAVY CONSTRUCTION PROJECTS (including sewer/water construction).

Modification Number Publication Date
0 01/02/2026

CARP0064-007 04/01/2025

	Rates	Fringes
CARPENTER (Form Work Only).....	\$ 33.89	24.06

ELEC1701-001 07/01/2024

	Rates	Fringes
ELECTRICIAN.....	\$ 37.10	8.60+30.8%

ENGI0181-046 07/01/2025

	Rates	Fringes
POWER EQUIPMENT OPERATOR		
GROUP 1.....	\$ 41.55	19.60
GROUP 2.....	\$ 38.69	19.60
GROUP 4.....	\$ 38.37	19.60

OPERATING ENGINEER CLASSIFICATIONS

GROUP 1 - Crane; Drill; Loader; Mechanic; Pumpcrete

GROUP 2 - Bobcat/Skid Steer/Skid Loader; Concrete Pump

GROUP 4 - Pump

Operators on cranes with booms 150 feet and over (including jib) shall receive \$1.00 above Group 1 rate; 250 feet and over including jib shall receive \$1.50 above Class 1 rate.
Combination Rate: All crane operators operating cranes, where the length of the boom in combination with the length of the piling leads equal or exceeds 150 feet, shall receive \$1.00 above the Group 1 rate.

Employees assigned to work below ground level are to be paid 10% above basic wage rate. This does not apply to open cut work.

IRON0070-001 06/01/2025

	Rates	Fringes
IRONWORKER (ORNAMENTAL AND REINFORCING).....	\$ 36.17	25.80

LABO0265-015 05/01/2024

	Rates	Fringes
LABORER Flagger.....	\$ 35.52	14.45

LABO0561-012 07/01/2025

	Rates	Fringes
LABORER Concrete Finishing.....	\$ 29.45	18.77

LABO1214-007 07/01/2025

	Rates	Fringes
LABORER Pipelayer.....	\$ 27.12	19.66

LABO1392-001 07/01/2025

	Rates	Fringes
LABORER Concrete Saw (Hand Held/Walk Behind).....	\$ 29.19	17.59
Concrete Worker.....	\$ 28.94	17.59

* UAVG-KY-0005 01/01/2025

	Rates	Fringes
OPERATOR: Forklift.....	\$ 40.05	19.10

SUKY2011-022 06/25/2014

	Rates	Fringes
IRONWORKER, STRUCTURAL.....	\$ 25.46	17.49

LABORER: Common or General.....	\$ 20.62	11.32
OPERATOR:		
Backhoe/Excavator/Trackhoe.....	\$ 23.76	13.00
OPERATOR: Bulldozer.....	\$ 23.14	15.51
OPERATOR: Oiler.....	\$ 24.34	13.00
OPERATOR: Roller.....	\$ 20.21	13.00
OPERATOR: Trencher.....	\$ 26.34	12.58
TRUCK DRIVER: Dump Truck.....	\$ 16.69	6.20

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections

under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the

collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

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WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

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Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

=====

END OF GENERAL DECISION

"

"General Decision Number: KY20260089 01/30/2026

Superseded General Decision Number: KY20250089

State: Kentucky

Construction Type: Building

County: Christian County in Kentucky.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Modification Number	Publication Date
0	01/02/2026
1	01/30/2026

BOIL0040-001 01/01/2025

	Rates	Fringes
BOILERMAKER.....	\$ 43.85	28.44

ENGI0181-053 06/01/2025

	Rates	Fringes
POWER EQUIPMENT OPERATOR (Crane).....	\$ 40.65	19.60

CRANES WITH BOOM 150 FEET & OVER, INCLUDING JIB, SHALL RECEIVE \$.75 ABOVE THE WAGE RATE; 250 FEET AND OVER, INCLUDING JIB, SHALL RECEIVE \$1.50 ABOVE THE WAGE RATE. ALL CRANES WITH PILING LEADS WILL RECEIVE \$.50 ABOVE THE WAGE, REGARDLESS OF BOOM LENGTH.

ENGI0181-054 06/01/2025

	Rates	Fringes
POWER EQUIPMENT OPERATOR (Drill).....	\$ 40.65	19.60

ENGI0181-079 06/01/2025

	Rates	Fringes
POWER EQUIPMENT OPERATOR (Loader).....	\$ 40.65	19.60

ENGI0181-080 06/01/2025

Rates Fringes

POWER EQUIPMENT OPERATOR
(Forklift).....\$ 40.65 19.60

ENGI0181-093 06/01/2025

Rates Fringes

POWER EQUIPMENT OPERATOR
(Oiler).....\$ 34.99 19.60

IRON0044-017 06/01/2025

Rates Fringes

IRONWORKER, ORNAMENTAL.....\$ 37.77 23.90

LABO0561-009 04/01/2025

Rates Fringes

LABORER (Mason Tender - Brick)...\$ 28.89 19.20

LABO1445-002 06/01/2025

Rates Fringes

LABORER (Power Tool Operator)....\$ 31.35 23.18

PAIN0156-004 04/01/2024

Rates Fringes

PAINTER: Spray.....\$ 30.62 20.30

FOOTNOTE A:
All Structures over 40? \$0.75/ hour above base wage
All Structures over 75? \$1.50/ hour above base wage
All Structures over 100? \$2.50/ hour above base wage

PLUM0184-006 07/01/2025

Rates Fringes

PLUMBER.....\$ 44.26 20.28

PLUM0633-001 08/01/2024

Rates Fringes

PIPEFITTER.....\$ 38.41 22.26

ROOF0106-010 07/01/2025

	Rates	Fringes
ROOFER.....	\$ 30.97	13.91

SFKY0669-002 04/01/2025

	Rates	Fringes
SPRINKLER FITTER.....	\$ 44.15	26.08

* SHEE0020-001 07/01/2025

	Rates	Fringes
SHEET METAL WORKER (HVAC Duct Installation Only).....	\$ 40.19	27.33

* UAVG-KY-0019 01/01/2025

	Rates	Fringes
ASBESTOS WORKER/HEAT & FROST INSULATOR.....	\$ 30.94	21.99

SUKY2015-028 06/02/2015

	Rates	Fringes
BRICKLAYER.....	\$ 25.09	10.05
CARPENTER (Form Work Only).....	\$ 25.20	7.12
CARPENTER, Excludes Form Work....	\$ 21.68	7.20
CEMENT MASON/CONCRETE FINISHER...	\$ 20.56	9.56
ELECTRICIAN.....	\$ 30.50	9.21
IRONWORKER, REINFORCING.....	\$ 27.31	16.86
IRONWORKER, STRUCTURAL.....	\$ 25.41	7.63
LABORER: Common or General.....	\$ 18.04	0.00
LABORER: Mason Tender - Cement/Concrete.....	\$ 19.85	9.87
LABORER: Pipelayer.....	\$ 15.00	4.08
OPERATOR: Backhoe/Excavator/Trackhoe.....	\$ 28.01	7.59

OPERATOR: Bulldozer.....	\$ 24.51	12.72
OPERATOR: Paver (Asphalt, Aggregate, and Concrete).....	\$ 22.52	4.00
OPERATOR: Roller.....	\$ 23.60	12.65
PAINTER (Brush and Roller).....	\$ 17.45	0.34
SHEET METAL WORKER, Excludes HVAC Duct Installation.....	\$ 36.24	6.89
TILE FINISHER.....	\$ 15.42	7.24
TILE SETTER.....	\$ 20.96	0.00
TRUCK DRIVER: Dump Truck.....	\$ 23.60	8.03

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing

on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

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END OF GENERAL DECISION"

Section 00 73 00 - Supplementary Conditions

SEE ATTACHED WAGE RATES

*** END OF NARRATIVE ***

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Other Instructions: See Statement of Work (SOW). DoDAAC: 965951 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS FT. CAMPBELL RESIDENT OFFICE, BUILDING 849 GEORGIA AVENUE FORT CAMPBELL, KY 42223-5122 UNITED STATES
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Overall Contract Delivery Period

0001	Delivery Schedule Delivery Estimated By Delivery Date 17 Feb 2028 Quantity 1 Job Address and POC Place of Performance DoDAAC: W22W9K CountryCode: USA W2SM ENDIST LOUISVILLE CW 600 MARTIN LUTHER KING JR PL, PO BOX 59 LOUISVILLE, KY 40201-0059 UNITED STATES ERICH JERO HOEHLER, DELIVER_TO_EMP_ID_NO
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Section 01 00 00 - General Requirements

Requirements

Design Build to Budget construction of FTC Fire Station located in Fort Campbell, Kentucky.

0001

Product Service Code : Y1JZ

North American Industry Classification System (NAICS) : 236220